

P O R T E R | S C O T T

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

CSAA INSURANCE EXCHANGE; DOES
1 through 50,

Defendants.

Case No.: CGC-25-631802

**REQUEST FOR JUDICIAL NOTICE IN
SUPPORT OF DEFENDANT'S MOTION
TO DECLARE PLAINTIFF A VEXATIOUS
LITIGANT**

Date: August 26, 2026

Time: 9:00 A.M.

Dept: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

Defendant respectfully requests that the Court take judicial notice of the following items, pursuant to Evidence Code sections 452 and 453:

1. Plaintiff's operative First Amended Complaint in the instant action. (A true and correct copy is attached hereto as **Exhibit A.**)

2. The Register of Actions for this current case in San Francisco Superior Court. (A true and correct copy is attached hereto as **Exhibit B.**)

3. The Register of Actions for Case No. CGC-25-631801 in San Francisco Superior Court. (A true and correct copy is attached hereto as **Exhibit C.**)

4. Defendant's Memorandum of Points and Authorities in support of Special Motion to Strike Plaintiff's First Amended Complaint (A true and correct copy is attached hereto as **Exhibit D.**)

5. Order Granting Defendant's Special Motion to Strike First Amended Complaint and Denying Other Relief (A true and correct copy is attached hereto as **Exhibit E.**)

6. Order Denying Plaintiff's "Prayer" and 170.6, filed in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached hereto as **Exhibit F.**)

7. Defendant's Notice of Entry of Judgment, filed in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached hereto as **Exhibit G.**)

8. Plaintiff's Notice of Appeal, filed in *Rosario v. Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102. (A true and correct copy is attached hereto as **Exhibit H.**)

Dated: July 17, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____
Chad S. Tapp
Tyler J. O'Connell
Attorneys for Defendant
CSAA INSURANCE EXCHANGE

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EXHIBIT A

Franciscus Dylan Rosario,
7624 Melody Dr.
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

FILED
Superior Court of California
County of San Francisco

FEB 25 2026

CLERK OF THE COURT
BY: Alexandra Feale
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631802
(Related to CGC-21-594102)

Case Management Conference: May 27,
2026 at 10:30 a.m., Department 610, 400
McAllister Street, San Francisco, CA
94102-3680

**AMENDED COMPLAINT FOR
DAMAGES AND INJUNCTIVE RELIEF**

1. FRAUD AND DECEIT (Civ. Code §§
1709-1710)
2. VIOLATION OF BUS. & PROF. CODE §
17200 (UCL)

DEMAND FOR JURY TRIAL

INTRODUCTION AND LIMITED THEORY OF THE CASE

1. Plaintiff brings this action on a narrow, document-anchored theory: a pre-litigation business misrepresentation by Defendant CSAA Insurance Exchange in a liability-claim denial letter, made

1 **knowingly or recklessly and used as institutional leverage to discourage or curtail an injured**
2 **claimant's pursuit of a valid claim (a deny-delay-defend claim-suppression tactic).**

3 2. The core alleged misrepresentation is in a letter dated February 25, 2021, in which CSAA stated,
4 in substance, that it had "concluded" its investigation and "concluded" its insured was not liable
5 (the "Denial Letter"). A true and correct copy of the Denial Letter, on CSAA letterhead regarding
6 Claim No. 1004-09-1054 and signed by Sarah Rash, Claims Representative, is attached hereto as
7 Exhibit A and incorporated by this reference.

8 3. Plaintiff alleges that, in context and ordinary meaning, the Denial Letter represented a com-
9 pleted investigative fact, namely that CSAA had already performed and completed an investiga-
10 tion sufficient to justify a categorical liability denial as of the letter date. A reasonable claimant
11 would understand "concluded our investigation" to mean CSAA obtained and reviewed the ba-
12 sic objective incident records it would normally collect to evaluate liability (including 911/CAD
13 and police-generated incident records), before issuing a categorical denial. **The representation of**
14 **investigative finality was intended and reasonably understood to signal futility—i.e., that fur-**
15 **ther pursuit would be pointless unless Plaintiff undertook burdens CSAA represented had**
16 **already been completed.**

17 4. Plaintiff alleges that the Denial Letter representation of a "concluded" investigation was mate-
18 rially false when made because, at that time, CSAA had not obtained or reviewed **basic, readily**
19 **obtainable, and foundational objective liability evidence** for the incident, including:

- 20 • 911 audio;
- 21 • body-worn camera footage; and
- 22 • computer aided dispatch records.

23 As alleged below, these categories of foundational objective evidence were generated contempora-
24 neously with the February 4, 2021 incident and were identifiable and obtainable during the period
25 CSAA represented its investigation had already "concluded."

26 5. Plaintiff further alleges that the falsity of the Denial Letter is corroborated by CSAA's later
27 claim activity reflecting post-denial pursuits of the same foundational objective liability evidence.

28 6. Plaintiff alleges reliance and resulting injury in connected categories that include (a) discrete

1 out-of-pocket procurement and investigation expenses incurred to obtain foundational objective
2 evidence that CSAA represented had already been investigated; (b) fees and costs incurred in
3 related third-party litigation that Plaintiff alleges was reasonably and proximately forced by the
4 Denial Letter misrepresentation, **because the misrepresentation shifted the burden of founda-**
5 **tional evidence collection and authentication onto Plaintiff as the price of continuing,** sought
6 here as damages under the tort-of-another doctrine described in *Prentice v. North Am. Title Guar.*
7 *Corp.* (1963) 59 Cal.2d 618; (c) incremental medical, therapeutic, and health-related expenses
8 incurred as a result of the fraud-induced delay and forced proof burden described herein; and (d)
9 incremental non-economic harm, including physical exacerbation, pain and suffering, emotional
10 distress, humiliation, and loss of enjoyment of life, proximately caused by the fraud-induced delay
11 and burdens created by CSAA's misrepresentation.

12 7. Plaintiff pleads attorney-fee damages with segregation and proof discipline, and does not seek
13 to recover unrecoverable or unsegregated fees. Plaintiff seeks third-party litigation fees and costs,
14 if any, only to the extent they are proximately caused by CSAA's tortious conduct and are proven
15 with competent evidence, segregation, and reasonableness.

16 8. Plaintiff further alleges that he incurred additional economic loss in the form of lost earnings,
17 diminished earning capacity, and lost productive time attributable to the incremental procurement,
18 review, authentication, and litigation-support burdens created by CSAA's Denial Letter misrepre-
19 sentation. Plaintiff pleads these categories separately from attorney-fee damages and will prove
20 them with competent, non-speculative evidence, including documentation of time expended, eco-
21 nomic value of that time, and the causal connection to the fraud-induced burdens alleged herein.

22 **TIMELINESS AND DELAYED DISCOVERY (CCP § 338(d))**

23 8A. Plaintiff brings this action within the applicable limitations periods, including Code of Civil
24 Procedure section 338(d), because Plaintiff did not discover, and could not reasonably have dis-
25 covered, the facts constituting CSAA's fraud until January 2025.

26 8B. From February 25, 2021 through the litigation period, CSAA's written Denial Letter and
27 continuing denial position represented investigative finality and did not disclose that CSAA had
28 failed to obtain and review basic, readily obtainable, foundational objective incident records be-

1 fore declaring its investigation “concluded.”

2 8C. Plaintiff first discovered facts revealing the falsity and/or reckless nature of the “investigation
3 concluded” representation in January 2025, on the eve of trial in the related action, when defense
4 counsel asserted in pretrial filings and proceedings that the 911 recording and related incident
5 records had not been produced in discovery, were of “unknown provenance,” and were being pre-
6 sented at the “eleventh hour”—thereby exposing that the foundational incident records had not
7 been collected and produced through the insurer/defense-side pipeline that would ordinarily exist
8 if CSAA had truly completed a reasonable pre-denial investigation as represented.

9 8D. Plaintiff acted diligently upon discovery by promptly raising the issue in pretrial proceedings,
10 including at the February 18, 2025 hearing, and by investigating the procurement history and chain
11 of custody necessary to plead this action with specificity.

12 8E. Accordingly, the limitations period began to run no earlier than January 2025, and this action
13 is timely.

14 **JURISDICTION AND VENUE**

15 9. This Court has jurisdiction over this action because the causes of action asserted herein arise
16 from conduct occurring in California and involve Defendants who do business in California.

17 10. Venue is proper in San Francisco County because Plaintiff resides in San Francisco County
18 and the events and omissions giving rise to the claims occurred, in substantial part, in this County.

19 **PARTIES**

20 11. Plaintiff FRANCISCUS DYLAN ROSARIO is an individual residing in San Francisco, Cali-
21 fornia.

22 12. Defendant CSAA INSURANCE EXCHANGE (“CSAA”) is a California reciprocal insurer
23 and, upon information and belief, does business in California, including in San Francisco County.

24 13. Plaintiff is ignorant of the true names and capacities of Defendants sued herein as DOES
25 1 through 50, inclusive, and therefore sues these Defendants by such fictitious names. Plaintiff
26 will amend this Complaint to allege their true names and capacities when ascertained. Plaintiff is
27 informed and believes, and based thereon alleges, that each Doe Defendant is legally responsible
28 in some manner for the occurrences alleged and that Plaintiff’s damages were proximately caused

1 by their conduct.

2 **FACTUAL ALLEGATIONS**

3 **THE COLLISION AND CLAIM SUBMISSION**

4 14. On or about February 4, 2021, Plaintiff was struck by a vehicle driven by CSAA's insured in
5 connection with the related matter CGC-21-594102.

6 15. Plaintiff made a bodily injury liability claim to CSAA as the liability insurer for its insured.

7 **THE FEBRUARY 25, 2021 DENIAL LETTER**

8 16. On February 25, 2021, CSAA mailed Plaintiff the Denial Letter (Exhibit A), stating, in sub-
9 stance:

10 "We have concluded our investigation... [and] concluded that our insured is not
11 liable."

12 17. Plaintiff alleges the Denial Letter represented that CSAA had already completed its investi-
13 gation as of February 25, 2021, and had reached its liability conclusion based on that completed
14 investigation.

15 18. Plaintiff alleges the Denial Letter statement that the investigation was "concluded" was ma-
16 terially false when made because, at the time of the Denial Letter, CSAA had not obtained and
17 reviewed foundational objective liability evidence, including:

- 18 • the 911 call audio;
- 19 • body-worn camera footage; and
- 20 • computer aided dispatch records.

21 Plaintiff alleges that the timing and obtainability facts supporting this falsity are set forth in para-
22 graphs 19 through 21, below.

23 **CHRONOLOGY OF PRE-DENIAL INVESTIGATION AND OBTAIN-** 24 **ABILITY**

25 19. Plaintiff alleges that the collision occurred on or about February 4, 2021. Plaintiff further
26 alleges that, because law enforcement responded and the incident was reported through emergency
27 channels, foundational objective incident records were generated contemporaneously in the or-
28 dinary course, including a 911 call recording, computer aided dispatch ("CAD") logs reflecting

1 the dispatch and response sequence, and officer body-worn camera footage (“BWC”) capturing
2 on-scene statements and observations.

3 20. Plaintiff alleges that CSAA’s Denial Letter dated February 25, 2021 necessarily represented
4 that CSAA had completed whatever investigation it claims to have performed during the approx-
5 imately three-week period between February 4, 2021 and February 25, 2021. Plaintiff further
6 alleges that the 911 recording and CAD logs were readily identifiable, requestable, and obtainable
7 within that time period through routine insurer claim-handling practices and ordinary third-party
8 record requests, and that BWC evidence was likewise identifiable and obtainable through appro-
9 priate requests, subpoenas, and/or law-enforcement record channels where liability was contested
10 and police responded.

11 21. Plaintiff further alleges that the practical obtainability of the 911 recording is corroborated by
12 later objective record history: Plaintiff’s then-counsel (Dolan Law Firm) obtained the 911 audio
13 recording on May 12, 2021, as reflected in sworn hearing testimony in the Underlying Action.
14 (Hearing Tr., Feb. 18, 2025, p. 31, ll. 22–24.) Plaintiff alleges that the same categories of foun-
15 dational objective evidence were obtainable during the period CSAA represented its investigation
16 had already “concluded,” and that CSAA’s failure to obtain and review such evidence before issu-
17 ing a categorical denial renders the “investigation concluded” representation materially false or, at
18 minimum, recklessly made without reasonable grounds.

19 21A. Plaintiff further alleges that the 911 call recording itself contains Defendant’s insured Subhi
20 Abdelhalim’s own admission, in substance: “I barely hit him with anything.” This admission was
21 authenticated by Abdelhalim at trial in the Underlying Action, when he confirmed under oath “Yes.
22 That is my voice.” (RT Day 8, 4/17/25, Line 1979.) Plaintiff alleges that the logical impossibility
23 of CSAA’s position is thereby demonstrated: if CSAA had in fact obtained and reviewed the 911
24 recording as part of a “concluded” investigation, CSAA could not have reached a conclusion that
25 its insured was “not liable” in the face of its own insured’s admission of contact. The existence of
26 this admission corroborates either that CSAA never obtained the recording (rendering the “investi-
27 gation concluded” representation false) or that CSAA obtained it and disregarded it (rendering the
28 denial reckless or fraudulent).

OBJECTIVE CLAIM ACTIVITY AFTER THE DENIAL LETTER

22. Plaintiff alleges that CSAA's post-denial claim activity reflects subsequent efforts to obtain the same foundational objective liability evidence identified above—i.e., 911 audio, body-worn camera footage, and computer aided dispatch records—corroborating that CSAA's investigation was not actually concluded when CSAA issued the Denial Letter, **and corroborating that CSAA's "investigation concluded" representation conveyed investigative finality that was untrue when made.**

Corroboration of Scienter and Institutional Claim-Suppression Purpose (DDD)

22A. Plaintiff alleges that describing an investigation as "concluded" in a categorical liability denial is not a neutral phrase; it is a representation of investigative finality that carries foreseeable coercive force. A reasonable consumer understands "concluded investigation" to mean the insurer has already obtained and evaluated basic objective incident records typically used to verify liability—especially where such records are readily obtainable from public agencies or routine channels.

22B. Plaintiff alleges CSAA's failure to obtain and review the foundational objective liability records identified above before issuing a categorical "investigation concluded / not liable" denial supports an inference of scienter: either CSAA actually knew the investigation was not complete when it represented otherwise, or CSAA made the representation recklessly without reasonable grounds for believing it true, because the existence and relevance of such records are obvious and central to a reasonable liability investigation.

22C. Plaintiff further alleges the purpose and natural consequence of falsely representing investigative finality is institutional claim suppression—i.e., to shift the cost and delay of basic evidence collection to the claimant, increase the claimant's burden to continue, and induce abandonment, curtailment, or discounted resolution. Plaintiff alleges this is consistent with a deny-delay-defend pattern in which the insurer creates leverage through delay and burden-shifting rather than through a good-faith investigation.

22D. Plaintiff alleges that CSAA's later claim activity corroborates the falsity and further corroborates CSAA's state of mind at the time of the Denial Letter, because post-denial efforts to obtain

1 the same foundational objective records are inconsistent with the claim that CSAA had already
2 “concluded” its investigation as of February 25, 2021.

3 **22E.** Plaintiff pleads paragraphs 22A–22D as corroboration of CSAA’s knowledge, recklessness,
4 and institutional purpose at the time of the Denial Letter, and not as an attempt to litigate privileged
5 communications or to transform this action into a separate “fraud on the court” cause of action.

6 **22F.** Upon information and belief, Plaintiff further alleges that CSAA funded and directed the
7 defense of the Underlying Action, Case No. CGC-21-594102, through retained defense counsel,
8 and that CSAA-funded counsel subsequently repeated and perpetuated the denial pattern in court
9 by making false and misleading representations regarding receipt, possession, and prior production
10 of the same foundational objective evidence CSAA had failed to obtain before issuing the Denial
11 Letter. Plaintiff alleges this continuity between CSAA’s pre-litigation misrepresentation and its
12 litigation-stage denial posture further corroborates the institutional deny–delay–defend purpose
13 and scienter alleged herein.

14 **RELIANCE AND ECONOMIC INJURY**

15 23. Plaintiff alleges he reasonably and justifiably relied on CSAA’s written statement that its
16 investigation was “concluded” by understanding it, in ordinary consumer meaning, to represent
17 that CSAA had already obtained and reviewed foundational objective liability evidence before
18 issuing a categorical denial—**not merely that CSAA had reached an opinion, but that CSAA**
19 **had completed the basic investigative steps that would justify stating the investigation itself**
20 **was finished.**

21 24. Plaintiff alleges that, as a direct and proximate result of CSAA’s misrepresentation, Plain-
22 tiff incurred discrete out-of-pocket procurement and investigation expenses to obtain records and
23 evidence that CSAA represented had already been investigated, including:

- 24 • fees paid to obtain public records and related materials;
- 25 • fees paid for copying, certification, and retrieval; and
- 26 • fees paid for transcription and review of obtained audio and video.

FORCED THIRD-PARTY LITIGATION AND PRENTICE ATTORNEY-FEE DAMAGES

25. Plaintiff alleges that CSAA's Denial Letter misrepresentation reasonably and foreseeably forced Plaintiff into third-party litigation in CGC-21-594102 to vindicate his claim and to obtain and authenticate foundational objective evidence relevant to liability, **because CSAA's misrepresentation and continuing denial position functionally required Plaintiff to undertake record procurement and authentication burdens CSAA represented had already been completed, thereby increasing delay and pressure to give up.**

25A. Plaintiff further alleges that the third-party litigation forced by CSAA's Denial Letter misrepresentation culminated in a 9-3 defense verdict in the Underlying Action, in which the jury was deprived of the governing legal standard and foundational evidence as a result of defense-side false representations regarding possession and prior production of the very evidence CSAA had failed to obtain before declaring its investigation "concluded." The scope and severity of the *Prentice* damages are measured by the full burden of the forced litigation, including a trial that was corrupted by the ongoing consequences of CSAA's initial misrepresentation.

26. Plaintiff alleges that the third-party litigation generated incremental evidence procurement and authentication burdens, and that Plaintiff incurred fees and litigation costs in that third-party action that would not have been incurred but for CSAA's Denial Letter misrepresentation.

27. Plaintiff alleges that the fees and costs incurred in the third-party litigation are sought here as tort damages under the tort-of-another doctrine described in *Prentice v. North Am. Title Guar. Corp.* (1963) 59 Cal.2d 618, because CSAA's tortious conduct caused Plaintiff to incur fees in litigation with another party.

28. Plaintiff does not seek attorney fees in this action as a prevailing-party fee award. Plaintiff seeks third-party litigation fees and costs as consequential damages proximately caused by CSAA's Denial Letter misrepresentation, subject to proof and segregation.

29. Plaintiff alleges that, consistent with California proof requirements for attorney-fee damages (including segregation and reasonableness requirements under California law), Plaintiff will prove at trial:

- the fact of the fees and costs incurred through competent evidence;
- that the fees and costs were reasonably and necessarily incurred as a proximate result of CSAA's Denial Letter misrepresentation; and
- segregation of recoverable fees and costs from any non-recoverable or unrelated time entries and tasks.

LOST EARNINGS, LOSS OF EARNING CAPACITY, AND LOST PRODUCTIVE TIME CAUSED BY FRAUD-INDUCED BURDENS

30. Plaintiff alleges that CSAA's Denial Letter misrepresentation created incremental burdens that required Plaintiff to spend substantial time and effort obtaining, reviewing, organizing, transcribing, authenticating, and presenting foundational objective evidence that CSAA represented had already been investigated before issuing a categorical denial.

31. Plaintiff alleges that these incremental tasks and burdens were reasonably foreseeable consequences of CSAA's misrepresentation and would not have been incurred, or would have been materially reduced, had CSAA truthfully investigated and communicated the status of its investigation rather than stating it was "concluded."

32. Plaintiff alleges that the incremental burdens described above caused Plaintiff to lose earnings and productive time, including time diverted from employment, business activity, recovery, and ordinary life functions, and that Plaintiff will prove the amount and value of this loss with competent evidence, including time logs, calendars, earnings history, and related documentation.

FRAUD-INDUCED DELAY, PHYSICAL EXACERBATION, AND ADDITIONAL HEALTH-RELATED HARM

33. Plaintiff alleges he suffered severe injuries in the underlying collision and that CSAA knew, or had reason to know, from the nature of the claim and the information provided in connection with the bodily-injury liability claim, that Plaintiff was physically vulnerable and that prolonged stress, delay, and repeated high-strain demands would foreseeably impose additional physical toll.

34. Plaintiff alleges that CSAA's false statement that its investigation was "concluded" foreseeably forced Plaintiff into a protracted and burdensome multi-year effort to establish and authenticate

1 foundational objective evidence relevant to liability, resulting in recurring high-strain events in-
2 cluding prolonged sitting, travel, preparation demands, and extended periods of stress and uncer-
3 tainty.

4 35. Plaintiff alleges that, as a direct and proximate result of the fraud-induced delay and burdens
5 described herein, Plaintiff suffered incremental physical harm beyond the underlying collision
6 injuries, including exacerbation of pain, flare episodes, sleep disruption, deconditioning, and func-
7 tional decline, and that Plaintiff required additional medical or therapeutic care to address these
8 incremental harms.

9 36. Plaintiff alleges that the incremental physical harm described herein is pleaded as a separate
10 “fraud-delta” category of damages proximately caused by CSAA’s misrepresentation and is not
11 intended to duplicate damages sought or awarded for the underlying collision itself.

12 **EMOTIONAL DISTRESS, HUMILIATION, AND PSYCHOLOGICAL**
13 **HARM PROXIMATELY CAUSED BY FRAUD-INDUCED DELAY AND**
14 **BURDENS**

15 37. Plaintiff alleges that CSAA’s Denial Letter conveyed finality by stating, in substance, that
16 CSAA had “concluded” its investigation and “concluded” its insured was not liable. Plaintiff
17 alleges that this representation, when false, foreseeably inflicted substantial emotional and psy-
18 chological harm by placing Plaintiff in the position of being categorically denied while also being
19 forced to personally bear the burden of obtaining and proving the foundational objective evidence
20 CSAA represented had already been investigated.

21 38. Plaintiff alleges that, as a direct and proximate result of the fraud-induced delay, uncertainty,
22 and forced proof burdens described herein, Plaintiff suffered emotional distress and psychologi-
23 cal harm including anxiety, persistent stress, sleep disruption, and related symptoms, as well as
24 humiliation and loss of dignity associated with being treated as though his claim lacked merit
25 notwithstanding the existence of readily obtainable objective evidence.

26 39. Plaintiff alleges that the emotional and psychological harm described herein manifested phys-
27 ically and functionally, including exacerbation of pain and impairment of daily functioning, and

1 that Plaintiff incurred additional out-of-pocket medical or therapeutic expenses related to managing
2 these conditions.

3 40. Plaintiff alleges that the emotional, psychological, and dignitary harms described herein are
4 pleaded as incremental “fraud-delta” damages proximately caused by CSAA’s misrepresentation
5 and the resulting burdens, and not as a duplication of the pain and suffering caused by the under-
6 lying collision itself.

7 **ADDITIONAL SPECIAL DAMAGES: MEDICAL/THERAPEUTIC EX-**
8 **PENSES, TRANSPORTATION, AND HOUSEHOLD ASSISTANCE**

9 41. Plaintiff alleges that, as a direct and proximate result of the fraud-induced delay and burdens
10 described herein, Plaintiff incurred additional out-of-pocket expenses including, but not limited
11 to, medical visits, therapy or counseling, medication expenses, transportation expenses associated
12 with treatment and required events, and costs of assistance with household tasks and self-care that
13 were increased by the incremental physical and psychological toll caused by the fraud-induced
14 delay.

15 42. Plaintiff will prove the amount of these additional out-of-pocket expenses with competent
16 documentary evidence, including invoices, receipts, medical billing records, pharmacy records,
17 and other admissible proof.

18 **FUTURE DAMAGES CAUSED BY FRAUD-INDUCED AGGRAVATION**
19 **AND ONGOING HARM**

20 43. Plaintiff alleges that the fraud-induced physical and psychological toll described herein has
21 ongoing consequences and may require future medical or therapeutic care, and may continue to
22 impair Plaintiff’s ability to work and to engage in ordinary life activities. Plaintiff seeks recovery
23 of future economic and non-economic damages proximately caused by CSAA’s fraud, according
24 to proof.

1 **CAUSES OF ACTION**

2 **FIRST CAUSE OF ACTION**

3 **FRAUD AND DECEIT (CIV. CODE §§ 1709-1710)**

4 **(AGAINST CSAA AND DOES 1-25)**

5 44. Plaintiff realleges and incorporates by reference paragraphs 1 through 43 as though fully set
6 forth herein.

7 45. On February 25, 2021, CSAA, through a claims representative whose identity is presently
8 unknown to Plaintiff and is therefore sued as Doe 1, mailed Plaintiff the Denial Letter (Exhibit A),
9 a standardized CSAA denial communication on CSAA letterhead regarding Claim No. 1004-09-
10 1054 and signed by Sarah Rash, Claims Representative, stating that CSAA had “concluded” its
11 investigation and “concluded” that its insured was not liable, **as a business claim decision and**
12 **denial communication issued in the ordinary course of CSAA’s claim-handling practices.**

13 46. Plaintiff alleges this statement was a representation of an existing or past fact—**investigative**
14 **finality**—namely that CSAA had already completed its investigation as of the Denial Letter date
15 and that its liability conclusion was based on that completed investigation.

16 47. Plaintiff alleges the representation was false when made because CSAA had not obtained
17 and reviewed **basic, readily obtainable, foundational objective liability evidence**—including
18 the 911 audio, body-worn camera footage, and computer aided dispatch records—as of February
19 25, 2021. Plaintiff further alleges that these categories of foundational objective evidence were
20 generated contemporaneously with the February 4, 2021 incident and were identifiable and obtain-
21 able during the period CSAA claimed its investigation had “concluded,” as alleged in paragraphs
22 19 through 21.

23 48. Plaintiff alleges CSAA knew the representation was false when made, or made it recklessly
24 without reasonable grounds for believing it to be true, **because a reasonable insurer would know**
25 **that a liability investigation cannot be truthfully described as “concluded” without obtaining**
26 **and reviewing the foundational objective incident records identified above (or, at minimum,**
27 **without knowing whether such records exist and what they show).** Plaintiff further alleges

1 CSAA made the representation as **institutional leverage**—with intent to induce Plaintiff to aban-
2 don, curtail, or discount pursuit of his claim—by falsely presenting investigative finality, shifting
3 basic evidence-procurement burdens onto Plaintiff, and increasing delay and pressure consistent
4 with deny–delay–defend claim suppression.

5 **48A.** Plaintiff alleges CSAA’s conduct was not a mere negligent miscommunication. It was an
6 affirmative business representation of investigative finality used to obtain leverage over an injured
7 claimant. Plaintiff alleges that falsely declaring an investigation “concluded” while omitting basic
8 foundational record collection constitutes despicable conduct in willful disregard of the rights of
9 others because its natural and probable consequence is to increase the claimant’s burdens, delay,
10 and coercive pressure to give up.

11 **48B.** Upon information and belief, Plaintiff alleges CSAA’s denial-letter wording and claim-handling
12 approach reflect institutional practices, training, supervision, and performance incentives that au-
13 thorize, encourage, or tolerate categorical denial communications representing investigative final-
14 ity when foundational objective evidence has not been obtained or reviewed, including claim-
15 closure targets, supervisor review practices for liability denials, and standardized denial letter tem-
16 plates.

17 **48C.** Upon information and belief, Plaintiff alleges CSAA’s officers, directors, or managing agents
18 authorized, ratified, or were aware of and consciously disregarded these practices, thereby support-
19 ing punitive damages under Civil Code section 3294 to the extent proven.

20 49. Plaintiff alleges he justifiably relied on CSAA’s representation and that his reliance was a
21 substantial factor in causing the economic losses pleaded herein.

22 50. As a direct and proximate result of CSAA’s fraud and deceit, Plaintiff alleges he incurred and
23 continues to incur damages including:

24 (a) Out-of-pocket procurement and investigation expenses incurred to obtain foundational objec-
25 tive evidence that CSAA represented had already been investigated, including fees paid to obtain
26 public records and related materials, copying/certification/retrieval fees, and transcription and re-
27 view expenses;

28 (b) Attorney fees and litigation costs incurred in the related third-party litigation that Plaintiff

1 alleges were proximately caused by CSAA's misrepresentation and are recoverable as damages
2 under *Prentice v. North Am. Title Guar. Corp.* (1963) 59 Cal.2d 618, subject to proof and
3 segregation as alleged;

4 (c) Lost earnings, diminished earning capacity, and lost productive time attributable to the in-
5 cremental procurement, review, authentication, and litigation-support burdens created by CSAA's
6 misrepresentation, segregated from attorney-fee damages and to be proven with competent, non-
7 speculative evidence, **including incremental time burdens caused by CSAA's burden-shifting**
8 **and delay leverage inherent in falsely representing investigative finality;**

9 (d) Additional medical, therapeutic, and health-related expenses proximately caused by the fraud-
10 induced delay and burdens described herein, including expenses incurred to address incremental
11 physical exacerbation and stress-related conditions;

12 (e) Incremental non-economic harm proximately caused by the fraud-induced delay and burdens,
13 including physical exacerbation, increased pain and suffering, emotional distress, humiliation, loss
14 of enjoyment of life, and impairment of ordinary functioning, all pleaded as "fraud-delta" damages
15 that are distinct from the underlying collision damages; and

16 (f) Future economic and non-economic damages proximately caused by CSAA's fraud, according
17 to proof.

18 51. Plaintiff alleges that CSAA's conduct was willful, oppressive, and fraudulent within the mean-
19 ing of Civil Code section 3294 in that CSAA stated its investigation was "concluded" and issued
20 a categorical liability denial without having obtained and reviewed foundational objective liability
21 evidence, and did so in a manner intended to convey investigative finality and to discourage or
22 defeat valid claims.

23 52. Plaintiff alleges that CSAA knew, or acted in conscious disregard of the high probability, that an
24 injured claimant faced with a categorical denial and false investigative finality would foreseeably
25 suffer substantial harm, including the shifting of evidence burdens, protracted delay, and physical
26 and psychological toll, and that CSAA's conduct was despicable in light of Plaintiff's physical
27 vulnerability and the foreseeable consequences of delay and forced proof burdens.

28 53. Plaintiff is informed and believes, and based thereon alleges, that CSAA's denial-letter lan-

1 guage and claims-handling conduct described herein was authorized, ratified, or approved by one
2 or more officers, directors, or managing agents of CSAA, or was implemented pursuant to corpo-
3 rate training, policies, metrics, or supervisory practices designed to use categorical denial commu-
4 nications to obtain claims leverage and delay, and that such authorization or ratification supports
5 an award of punitive damages against CSAA.

6 53A. Plaintiff further alleges that the Denial Letter's standardized form language ("concluded our
7 investigation" / categorical liability denial) and its use as a claims-handling communication support
8 a reasonable inference that the challenged denial-letter practice was implemented, approved, or
9 ratified at a managerial or policy level rather than being an isolated, ad hoc statement.

10 54. Plaintiff seeks compensatory damages according to proof at trial, including economic and
11 non-economic fraud-delta damages as alleged herein, and seeks punitive damages in an amount
12 sufficient to punish and deter, to the extent permitted by law.

13 **SECOND CAUSE OF ACTION**

14 **VIOLATION OF BUSINESS & PROFESSIONS CODE § 17200 (UCL)** 15 **(AGAINST CSAA AND DOES 26-50)**

16 55. Plaintiff realleges and incorporates by reference paragraphs 1 through 54 as though fully set
17 forth herein.

18 56. CSAA engaged in unlawful, unfair, and fraudulent business acts and practices within the
19 meaning of Business and Professions Code section 17200, including issuing the Denial Letter
20 as alleged above, **as part of a claim-handling practice that uses categorical "investigation**
21 **concluded" denial communications to create leverage through burden-shifting and delay.**

22 57. Unlawful: Plaintiff alleges CSAA's conduct constitutes common-law fraud and deceit in vio-
23 lation of Civil Code sections 1709 and 1710.

24 58. Fraudulent: Plaintiff alleges CSAA's denial-letter practice is likely to deceive because a reason-
25 able consumer would understand a statement that an investigation is "concluded" to mean the in-
26 surer has obtained and reviewed foundational objective liability evidence **or otherwise completed**
27 **the basic investigative steps necessary to truthfully represent investigative finality** before is-

1 suing a categorical liability denial, particularly where such evidence is generated at the time of the
2 incident through 911 and police response channels and is ordinarily obtainable during a routine
3 claim investigation.

4 59. Unfair: Plaintiff alleges CSAA's practice of issuing categorical denials that state an inves-
5 tigation is "concluded" when foundational objective liability evidence has not been obtained or
6 reviewed causes substantial injury by shifting the cost of basic evidence collection and authentica-
7 tion burdens onto the injured claimant, **creating delay and coercive pressure consistent with a**
8 **deny-delay-defend pattern that induces abandonment or undervalued resolution.**

9 60. Plaintiff has standing to pursue this claim because he has lost money or property as a result of
10 CSAA's unfair competition, including out-of-pocket procurement and investigation costs.

11 60A. Plaintiff also seeks injunctive relief because CSAA's challenged denial-letter practice is on-
12 going and, absent court-ordered restraint, threatens continuing and repeated injury. CSAA's "in-
13 vestigation concluded" denial language and related burden-shifting practice continues to be used
14 to resist payment and to impose evidentiary procurement burdens, including on Plaintiff in connec-
15 tion with the continuing dispute over CSAA's denial and the consequences alleged herein. Because
16 CSAA has not retracted the Denial Letter and continues to maintain the denial position, Plaintiff
17 faces a real and immediate threat of repeated application of the same denial-letter practice and
18 proof-burden shifting in ongoing and future efforts to obtain claim-related relief, absent injunctive
19 restraint.

20 61. Plaintiff seeks:

- 21 • restitution of the out-of-pocket procurement and investigation costs according to proof; and
- 22 • injunctive relief enjoining CSAA from issuing denial letters stating an investigation is "con-
23 cluded" **unless and until** CSAA has obtained and reviewed foundational objective liability
24 evidence reasonably necessary to support such a representation, including where applicable
25 911 audio, body-worn camera footage, and computer aided dispatch records, **or else clearly**
26 **discloses that such records were not obtained and reviewed before stating any liability**
27 **conclusion;**

1 **PRAYER FOR RELIEF**

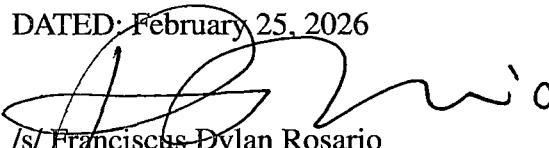
2 WHEREFORE, Plaintiff prays for judgment as follows:

- 3 1. For restitution pursuant to Business and Professions Code section 17200, in an amount according
4 to proof;
- 5 2. For injunctive relief enjoining CSAA from issuing denial letters stating an investigation is
6 “concluded” **unless and until** CSAA has obtained and reviewed foundational objective liability
7 evidence reasonably necessary to support such a representation, including where applicable 911
8 audio, body-worn camera footage, and computer aided dispatch records, **or else clearly discloses**
9 **that such records were not obtained and reviewed before stating any liability conclusion;**
- 10 3. For compensatory damages for economic and non-economic losses caused by fraud and deceit
11 according to proof, including out-of-pocket procurement and investigation expenses, additional
12 medical/therapeutic expenses, and fraud-delta physical and emotional harm as alleged;
- 13 4. For attorney fees and litigation costs as damages to the extent permitted under *Prentice v. North*
14 *Am. Title Guar. Corp.* (1963) 59 Cal.2d 618 and proven with segregation and reasonableness as
15 alleged;
- 16 5. For punitive damages to the extent permitted by law;
- 17 6. For costs of suit;
- 18 7. For prejudgment interest as permitted by law; and
- 19 8. For such other and further relief as the Court deems just and proper.

20 **DEMAND FOR JURY TRIAL**

21 62. Plaintiff hereby demands a trial by jury on all causes of action so triable.

22 DATED: February 25, 2026

23 
24 /s/ Franciscus Dylan Rosario
25 FRANCISCUS DYLAN ROSARIO
26 Plaintiff, In Pro Per
27 7624 Melody Dr., Rohnert Park, CA 94928
28 650.488.7510
soltrinox@gmail.com

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EXHIBIT B

THE SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

Case Number: CGC25631802
Title: FRANCISCUS DYLAN ROSARIO VS. CSAA INSURANCE EXCHANGE ET AL
Cause of Action: FRAUD
Generated: 2026-07-21 5:10 pm

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Register of Actions

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2026-07-17	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF DEFENDANT CSAA INSURANCE EXCHANGE'S MOTION FOR ATTORNEYS' FEES AND COSTS UNDER C.C.P. SECTION 425.16(C) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE	View	
2026-07-17	DECLARATION OF TYLER J. O'CONNELL IN SUPPORT OF DEFENDANT CSAA INSURANCE EXCHANGE'S MOTION FOR ATTORNEYS' FEES AND COSTS UNDER C.C.P. SECTION 425.16(C) (TRANSACTION ID # 80070231) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE	View	
2026-07-17	NOTICE OF MOTION AND MOTION FOR ATTORNEYS' FEES AND COSTS UNDER C.C.P. SECTION 425.16 (TRANSACTION ID # 80070231) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE HEARING SET FOR AUG-26-2026 AT 09:00 AM IN DEPT 302	View	\$60.00
2026-07-01	ORDER GRANTING SPECIAL MOTION TO STRIKE FIRST AMENDED COMPLAINT AND DENYING OTHER RELIEF.	View	
2026-07-01	CERTIFICATE OF SERVICE BY MAIL FILED	View	
2026-07-01	LAW AND MOTION, 301, (PREVIOUSLY TAKEN UNDER SUBMISSION ON 6/24/26) MOTION TO STRIKE AMENDED COMPLAINT, OFF CALENDAR AS MOOT. = (302/CVA)		
2026-07-01	LAW AND MOTION 301, (PREVIOUSLY TAKEN UNDER SUBMISSION ON 6/24/26) MOTION TO STRIKE AMENDED COMPLAINT, GRANTED. SEE SCANNED ORDER FOR DETAILS. = (302/CVA)		
2026-07-01	LAW AND MOTION, 301, (PREVIOUSLY TAKEN UNDER SUBMISSION ON 6/24/26) MOTION TO STRIKE, DENIED AS MOOT. SEE SCANNED ORDER FILED 7/1/26 FOR DETAILS) = (302/CVA)		
2026-07-01	DISCOVERY, 301, (PREVIOUSLY TAKEND UNDER SUBMISSION ON 6/24/26) MOTION TO COMPEL DISCOVERY - DENIED (SEE SCANNED ORDER FILED 7/1/26) = (302/CVA)		
2026-07-01	LAW AND MOTION, 301,(PREVIOUSLY TAKEN UNDER SUBMISSION ON 6/24/26) MOTION FOR SANCTIONS, DENIED. SEE SCANNED ORDER FILED ON 7/1/26) = (302/CVA)		
2026-07-01	LAW AND MOTION, 301, (PREVIOUSLY TAKEN UNDER SUBMISSION ON 6/24/26) DEMURRER TO AMENDED COMPLAINT OFF CALENDAR AS MOOT. SEE SCANNED ORDER FILED 7/1/26 FOR FULL DETAILS) = (302/CVA)		

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2026-07-01	LAW AND MOTION, 301,(PREVIOUSLY TAKEN UNDER SUBMISSION ON 6/24/26) MOTION FOR LEAVE TO FILE THIRD AMENDED COMPLAINT, DENIED. (SEE ORDER FILED 7/1/26 FOR DETAILS) = (302/CVA)		
2026-07-01	DISCOVERY 301, PLAINTIFF FRANCISCUS ROSARIO'S MOTION TO DEEM ADMITTED, COMPEL, AND FOR SANCTIONS. THE MOTION REGARDING DISCOVERY IS DENIED AS MOOT. PER SEPARATE ORDER, THE COURT HAS GRANTED DEFENDANT'S SPECIAL MOTION TO STRIKE THE OPERATIVE PLEADING. JUDGE: CHRISTINE VAN AKEN; CLERK: W. TRUPEK; NOT REPORTED (301/CVA)		
2026-07-01	MINI MINUTES FOR JUL-01-26 09:00 AM FOR DEPT 301		
2026-06-24	DISCOVERY, 301, PLAINTIFF'S MOTION TO COMPEL DISCOVERY. ARGUED AND THE COURT TAKES THE MATTER UNDER SUBMISSION. JUDGE: CHRISTINE VAN AKEN, CLERK: E. LARNAUTI, REPORTED BY FOR THE RECORD (10:34 AM - 10:58 AM)		
2026-06-24	MINI MINUTES FOR JUN-24-26 09:00 AM FOR DEPT 301		
2026-06-24	LAW AND MOTION, 301, PLAINTIFF'S MOTION FOR SANCTIONS. ARGUED AND THE COURT TAKES THE MATTER UNDER SUBMISSION. JUDGE: CHRISTINE VAN AKEN, CLERK: E. LARNAUTI, REPORTED BY FOR THE RECORD (10:34 AM - 10:58 AM)		
2026-06-24	MINI MINUTES FOR JUN-24-26 09:00 AM FOR DEPT 301		
2026-06-24	LAW AND MOTION, 301, PLAINTIFF'S MOTION TO STRIKE THE MAY 6, 2026 REPLY DECLARATION OF TYLER J. O'CONNELL AND EXHIBIT A; OR, IN THE ALTERNATIVE, FOR LEAVE TO FILE A SUR-REPLY. ARGUED AND THE COURT TAKES THE MATTER UNDER SUBMISSION. JUDGE: CHRISTINE VAN AKEN, CLERK: E. LARNAUTI, REPORTED BY FOR THE RECORD (10:34 AM - 10:58 AM)		
2026-06-24	MINI MINUTES FOR JUN-24-26 09:00 AM FOR DEPT 301		
2026-06-24	LAW AND MOTION, 301, DEFENDANT'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT. ARGUED AND THE COURT TAKES THE MATTER UNDER SUBMISSION. JUDGE: CHRISTINE VAN AKEN, CLERK: E. LARNAUTI, REPORTED BY FOR THE RECORD (10:34 AM - 10:58 AM)		
2026-06-24	MINI MINUTES FOR JUN-24-26 09:00 AM FOR DEPT 301		
2026-06-24	LAW AND MOTION, 301, DEFENDANT CSAA INSURANCE EXCHANGE'S MOTION TO STRIKE PLEADING. ARGUED AND THE COURT TAKES THE MATTER UNDER SUBMISSION. JUDGE: CHRISTINE VAN AKEN, CLERK: E. LARNAUTI, REPORTED BY FOR THE RECORD (10:34 AM - 10:58 AM)		
2026-06-24	MINI MINUTES FOR JUN-24-26 09:00 AM FOR DEPT 301		
2026-06-24	LAW AND MOTION, 301, DEFENDANT'S SPECIAL MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT PURSUANT TO CCP 425.16 (ANTI-SLAPP MOTION). ARGUED AND THE COURT TAKES THE MATTER UNDER SUBMISSION. JUDGE: CHRISTINE VAN AKEN, CLERK: E. LARNAUTI, REPORTED BY FOR THE RECORD (10:34 AM - 10:58 AM)		
2026-06-24	MINI MINUTES FOR JUN-24-26 09:00 AM FOR DEPT 301		
2026-06-24	LAW AND MOTION, 301, PLAINTIFF FRANCISCUS ROSARIO'S MOTION FOR LEAVE TO FILE THIRD AMENDED COMPLAINT. ARGUED AND THE COURT TAKES THE MATTER UNDER SUBMISSION. JUDGE: CHRISTINE VAN AKEN, CLERK: E. LARNAUTI, REPORTED BY FOR THE RECORD (10:34 AM - 10:58 AM)		
2026-06-24	MINI MINUTES FOR JUN-24-26 09:00 AM FOR DEPT 301		
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2026-06-24	PLAINTIFFS REQUEST FOR JUDICIAL NOTICE OF GOVERNING STATUTES AND PUBLISHED DECISIONS ON LEAVE TO AMEND, MANDATORY LEAVE ON DEMURRER, AND ANTI-SLAPP PLEADING SEQUENCING (TRANSACTION ID # 79860062) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-06-23	REQUEST FOR JUDICIAL NOTICE OF AUTHORITIES RE GRAVAMEN, PRIOR TORT, AND LITIGATION-EVIDENCE DISTINCTION IN SUPPORT OF OPPOSITION TO DEFENDANT'S SPECIAL MOTION TO STRIKE (TRANSACTION ID # 79856829) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
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2026-06-23	PLAINTIFF SUPPLEMENTAL REQUEST FOR JUDICIAL NOTICE RE JUNE 23 2026 TENTATIVE RULING LINE 10 DISPOSITIVE FRAME (TRANSACTION ID # 79856568) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
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2026-06-23	STATEMENT OF OBJECTIONS AND APPELLATE PRESERVATION RE JUNE 23, 2026 TENTATIVE RULING ON SPECIAL MOTION TO STRIKE (TRANSACTION ID # 79856217) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
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2026-06-23	PLAINTIFF'S STATEMENT OF OBJECTIONS AND APPELLATE PRESERVATION RE JUNE 23, 2026 TENTATIVE RULING ON SPECIAL MOTION TO STRIKE (TRANSACTION ID # 79856108) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
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2026-06-18	COURT RECORDING REQUEST (TRANSACTION ID # 79812953) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-06-16	PRELIMINARY STATEMENT AND PRAYER (TRANSACTION ID # 79795725) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
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2026-06-15	DECLARATION OF COMPLIANCE CRC 2.256 - 3.1110 (SECOND SUPPLEMENTAL RJN) (TRANSACTION ID # 79781622) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
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2026-06-15	SUPPLEMENTAL BENCH BRIEF RE JUDICIAL ROADMAP FOR THE JUNE 24, 2026 CONSOLIDATED HEARING (TRANSACTION ID # 79781622) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-06-15	DISCOVERY 302, PLAINTIFF FRANCISCUS ROSARIO'S MOTION TO COMPEL DISCOVERY; TRANSFERRED TO BE HEARD IN DEPARTMENT DEPT. 301 IN FRONT OF JUDGE VAN AKEN ON THE SAME DATE JUNE 24,2026 AT 9:00 A.M.		
2026-06-15	LAW AND MOTION 302, PLAINTIFF FRANCISCUS ROSARIO'S MOTION FOR SANCTIONS; TRANSFERRED TO BE HEARD IN DEPARTMENT DEPT. 301 IN FRONT OF JUDGE VAN AKEN ON THE SAME DATE JUNE 24,2026 AT 9:00 A.M.		
2026-06-15	LAW AND MOTION 302, PLAINTIFF FRANCISCUS ROSARIO MOTION TO STRIKE; TRANSFERRED TO BE HEARD IN DEPARTMENT DEPT. 301 IN FRONT OF JUDGE VAN AKEN ON THE SAME DATE JUNE 24,2026 AT 9:00 A.M.		
2026-06-15	LAW AND MOTION 302, DEFENDANT CSAA INSURANCE EXCHANGE DEMURRER TO AMENDED COMPLAINT; TRANSFERRED TO BE HEARD IN DEPARTMENT DEPT. 301 IN FRONT OF JUDGE VAN AKEN ON THE SAME DATE JUNE 24,2026 AT 9:00 A.M.		
2026-06-15	LAW AND MOTION 302, DEFENDANT CSAA INSURANCE EXCHANGE MOTION TO STRIKE AMENDED COMPLAINT; TRANSFERRED TO BE HEARD IN DEPARTMENT DEPT. 301 IN FRONT OF JUDGE VAN AKEN ON THE SAME DATE JUNE 24,2026 AT 9:00 A.M.		
2026-06-11	DISCOVERY 302, PLAINTIFF FRANCISCUS ROSARIO'S MOTION TO DEEM ADMITTED, COMPEL, AND FOR SANCTIONS. TRANSFERRED TO BE HEARD IN DEPARTMENT 301 ON JULY 1, 2026. JUDGE: JOSEPH M. QUINN, CLERK: M. GOODMAN, NOT REPORTED. (302/JMQ)		
2026-06-11	MINI MINUTES FOR JUN-11-26 09:00 AM FOR DEPT 302		
2026-06-10	CASE MANAGEMENT CONFERENCE OF JUL-08-2026 CONTINUED TO SEP-09-2026 AT 10:30 AM IN DEPARTMENT 610. NOTICE SENT BY COURT.	View	
2026-05-27	LAW AND MOTION 302, RE: MOTION TO STRIKE AMENDED COMPLAINT. NO APPEARANCE WAS MADE BY ANY PARTY, COUNSEL, OR INTERESTED PERSON. THE COURT ADOPTS ITS TENTATIVE RULING AS FOLLOWS: TRANSFERRED TO BE HEARD IN		

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	DEPARTMENT 301 ON JUNE 24, 2026. JUDGE: JOSEPH M. QUINN. CLERK: R. WOODS. NOT REPORTED. (302/JMQ)		
2026-05-27	MINI MINUTES FOR MAY-27-26 09:00 AM FOR DEPT 302		
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2026-05-27	SUPPLEMENTAL RJN (REYNA CONDUCT RECORDS) (TRANSACTION ID # 79564120) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-27	DECLARATION OF ROSARIO (REYNA CONDUCT EXHIBITS) (TRANSACTION ID # 79564120) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-27	INDEX OF 801 ESTOPPEL APPENDIX (TRANSACTION ID # 79564117) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-27	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79564117) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-27	DECLARATION OF COMPLIANCE CRC 2.256/3.1110 (TRANSACTION ID # 79564117) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-27	VERIFIED STATEMENT OF PRIVACY (TRANSACTION ID # 79564117) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-27	VERBATIM 801 ADMISSIONS AND 802 CONTRADICTIONS (TRANSACTION ID # 79564117) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-27	SUPPLEMENTAL REQUEST FOR JUDICIAL NOTICE (TRANSACTION ID # 79564117) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-27	DECLARATION OF FRANCISCUS DYLAN ROSARIO (TRANSACTION ID # 79564117) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-27	MEMORANDUM OF POINTS AND AUTHORITIES (TRANSACTION ID # 79564117) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-27	NOTICE OF CROSS-CASE JUDICIAL ESTOPPEL FACTS (TRANSACTION ID # 79564117) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79558043) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79558043) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79558043) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	REQUEST FOR JUDICIAL NOTICE (TRANSACTION ID # 79558043) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	NOTICE OF IMPROPER NEW MATTER IN DEMURRER REPLY PAPERS (TRANSACTION ID # 79558043) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	NOTICE OF DIRECTLY ADVERSE AUTHORITY (RPC 3.3(A)(2), JKC3H8) (TRANSACTION ID # 79558043) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	NOTICE OF SUPPLEMENTAL AUTHORITY (JKC3H8 V. COLTON) (TRANSACTION ID # 79558043) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

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2026-05-26	REQUEST FOR JUDICIAL NOTICE OF DOCKETED DEFENSE MFL-SAC OPPOSITION (TRANSACTION ID # 79558043) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	REPLY IN SUPPORT OF MOTION FOR LEAVE TO FILE THIRD AMENDED COMPLAINT (TRANSACTION ID # 79558043) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	REQUEST FOR JUDICIAL NOTICE (TRANSACTION ID # 79558043) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	REQUEST FOR JUDICIAL NOTICE (TRANSACTION ID # 79558043) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79557653) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	REFRESHED NOTICE OF LODGING LODGINGTRIAL REPORTER TRANSCRIPTS, AUDIORECORDINGS, AND COMPUTER-AIDED DISPATCH (CAD) RECORDS (SUPERSEDESMAY 8, 2026 LODGING NOTICE FOR JUNE 24, 2026 HEARING LINE) (TRANSACTION ID # 79557653) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79557653) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	REQUEST FOR JUDICIAL NOTICE REQUEST FOR JUDICIAL NOTICE OF FLATLEY V. MAURO (2006) 39 CAL.4TH 299 (ILLEGALITY-AS-MATTER-OF-LAW CHANNEL FOR CODE OF CIVIL PROCEDURE SECTION 425.16) (TRANSACTION ID # 79557653) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79557653) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	NOTICE OF THRESHOLD AUTHORITY: INLAND OVERSIGHT COMMITTEE V. CITY OF SAN BERNARDINO(2017) 8 CAL.APP.5TH 1150 AND CODE OF CIVIL PROCEDURE SECTION 425.17(C) (TRANSACTION ID # 79557653) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79557653) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	SUPPLEMENTAL REQUEST FOR JUDICIAL NOTICE OF INSURANCE CODE SECTION 790.03(H) AND TITLE 10, CALIFORNIA CODE OF REGULATIONS, SECTIONS 2695.1 THROUGH 2695.14 (FAIR CLAIMS SETTLEMENT PRACTICES REGULATIONS) (TRANSACTION ID # 79557653) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79557653) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	NOTICE OF ADDITIONAL DIRECTLY ADVERSE AUTHORITY UNDER CALIFORNIA RULE OF PROFESSIONAL CONDUCT 3.3(A)(2): DICKINSON V. COSBY AND NEWPORT HARBOR VENTURES, LLC V. MORRIS CERULLO WORLD EVANGELISM (TRANSACTION ID # 79557653) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79557653) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	REQUEST FOR JUDICIAL NOTICE OF MAY 12, 2026 ANTI-SLAPP MINUTE ORDER ENTERED IN COMPANION CASE CGC-25-631801 (TRANSACTION ID # 79557653) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79557653) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	REQUEST FOR JUDICIAL NOTICE OF APR 30, 2026 MINUTE ORDER (MFL-SAC DENIAL) WITH EMBEDDED STATEMENT OF ON-RECORD OBJECTION (B8 PRESERVATION) (TRANSACTION ID # 79557653) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

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2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79557458) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	REQUEST FOR JUDICIAL NOTICE (TRANSACTION ID # 79557458) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	DECLARATION OF FRANCISCUS DYLAN ROSARIO IN SUPPORT OF 1008 B RENEWED MFL TAC (TRANSACTION ID # 79557458) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF 1008 B RENEWED MFL TAC (TRANSACTION ID # 79557458) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	NOTICE OF MOTION AND RENEWED MOTION FOR LEAVE TO FILE THIRD AMENDED COMPLAINT (TRANSACTION ID # 79557458) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79557458) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79556888) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	REQUEST FOR JUDICIAL NOTICE (TRANSACTION ID # 79556888) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	DECLARATION OF FRANCISCUS DYLAN ROSARIO IN SUPPORT OF 425 16 G DISCOVERY (TRANSACTION ID # 79556888) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF 425 16 G DISCOVERY (TRANSACTION ID # 79556888) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	NOTICE OF MOTION TO COMPEL DISCOVERY (TRANSACTION ID # 79556888) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR JUN-24-2026 AT 09:00 AM IN DEPT 302	View	IFP
2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79556888) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	NOTICE REPLY DECL MISCONDUCT CUMULATIVE RPC 3 3 3 4 (TRANSACTION ID # 79556888) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79556888) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	REQUEST FOR JUDICIAL NOTICE (TRANSACTION ID # 79556888) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	DECLARATION OF FRANCISCUS DYLAN ROSARIO IN SUPPORT OF 128 7 SANCTIONS (TRANSACTION ID # 79556888) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF 128 7 SANCTIONS (TRANSACTION ID # 79556888) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	NOTICE OF MOTION AND MOTION FOR SANCTIONS (TRANSACTION ID # 79556888) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR JUN-24-2026 AT 09:00 AM IN DEPT 302	View	IFP
2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79556888) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	NOTICE CONSOLIDATED JUNE24 COHORT ACKNOWLEDGMENT 2026 (TRANSACTION ID # 79556888) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	LAW AND MOTION 302, PLAINTIFF FRANCISCUS ROSARIO MOTION FOR LEAVE TO FILE THIRD AMENDED COMPLAINT. TRANSFERRED TO BE HEARD IN DEPARTMENT 301 ON JUNE 24, 2026. JUDGE:		

Date	Proceedings	Document	Fee
	JOSEPH M. QUINN; CLERK: M. MACADANGDANG; NOT REPORTED. (302/JMQ)		
2026-05-26	MINI MINUTES FOR MAY-26-26 09:00 AM FOR DEPT 302		
2026-05-19	LAW AND MOTION 302, RE: MOTION TO STRIKE 1ST AMENDED COMPLAINT. NO APPEARANCE WAS MADE BY ANY PARTY, COUNSEL, OR INTERESTED PERSON. THE COURT ADOPTS ITS TENTATIVE RULING AS FOLLOWS: CONTINUED ON THE COURT'S OWN MOTION TO BE HEARD ON MAY 27, 2026. JUDGE: JOSEPH M. QUINN. CLERK: R. WOODS. NOT REPORTED. (302/JMQ)		
2026-05-19	MINI MINUTES FOR MAY-19-26 09:00 AM FOR DEPT 302		
2026-05-18	DISCOVERY 302, PLAINTIFF FRANCISCUS ROSARIO'S MOTION TO DEEM ADMITTED, COMPEL, AND FOR SANCTIONS CONTINUED ON COURT'S OWN MOTION TO JUNE 11, 2026. JUDGE: JOSEPH M. QUINN; CLERK: W. TRUPEK; NOT REPORTED (302/JMQ)		
2026-05-18	MINI MINUTES FOR MAY-18-26 09:00 AM FOR DEPT 302		
2026-05-13	LAW AND MOTION 302, 3-PLAINTIFF FRANCISCUS ROSARIO'S MOTION TO STRIKE. CONTINUED TO JUNE 24, 2026 PER AGREEMENT OF THE PARTIES AND APPROVAL OF THE COURT. ALL PARTIES IMMEDIATELY TO PROVIDE COURTESY COPIES OF THEIR FILINGS PER SF LOCAL RULE 2.7B WITH A COVER LETTER REFLECTING THE NEW HEARING DATE. JUDGE: JOSEPH M. QUINN, CLERK: M. GOODMAN, NOT REPORTED. (302/JMQ)		
2026-05-13	LAW AND MOTION 302, 2-DEFENDANT CSAA INSURANCE EXCHANGE DEMURRER TO AMENDED COMPLAINT. CONTINUED TO JUNE 24, 2026 PER AGREEMENT OF THE PARTIES AND APPROVAL OF THE COURT. ALL PARTIES IMMEDIATELY TO PROVIDE COURTESY COPIES OF THEIR FILINGS PER SF LOCAL RULE 2.7B WITH A COVER LETTER REFLECTING THE NEW HEARING DATE. JUDGE: JOSEPH M. QUINN, CLERK: M. GOODMAN, NOT REPORTED. (302/JMQ)		
2026-05-13	LAW AND MOTION 302, 1-DEFENDANT CSAA INSURANCE EXCHANGE MOTION TO STRIKE AMENDED COMPLAINT. CONTINUED TO JUNE 24, 2026 PER AGREEMENT OF THE PARTIES AND APPROVAL OF THE COURT. ALL PARTIES IMMEDIATELY TO PROVIDE COURTESY COPIES OF THEIR FILINGS PER SF LOCAL RULE 2.7B WITH A COVER LETTER REFLECTING THE NEW HEARING DATE. JUDGE: JOSEPH M. QUINN, CLERK: M. GOODMAN, NOT REPORTED. (302/JMQ)		
2026-05-13	MINI MINUTES FOR MAY-13-26 09:00 AM FOR DEPT 302		
2026-05-13	MINI MINUTES FOR MAY-13-26 09:00 AM FOR DEPT 302		
2026-05-13	MINI MINUTES FOR MAY-13-26 09:00 AM FOR DEPT 302		
2026-05-12	DECLARATION OF TYLER J. O'CONNELL IN SUPPORT OF OPPOSITION TO PLAINTIFF'S MOTION FOR LEAVE TO FILE A THIRD AMENDED COMPLAINT (TRANSACTION ID # 79456062) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE	View	
2026-05-12	OPPOSITION TO PLAINTIFFS MOTION FOR LEAVE TO FILE A THIRD AMENDED COMPLAINT (TRANSACTION ID # 79456062) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE	View	
2026-05-12	REPLY TO PLAINTIFFS OPPOSITION TO DEFENDANT'S MOTION TO STRIKE PLEADING (TRANSACTION ID # 79456062) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE	View	
2026-05-11	EXHIBIT PACKET IN SUPPORT OF BENCH BRIEF RE GATEWAY SEQUENCING AND INLAND OVERSIGHT (TRANSACTION ID # 7948834) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-11	BENCH BRIEF ON SEQUENCING OF SECTION 425.17 GATEWAYS AND PER-PRONG THRESHOLD ANALYSIS UNDER INLAND OVERSIGHT; SECTION 425.17(C) DIRECT COMMERCIAL-SPEAKER APPLICATION; FLATLEY - INSURANCE-CODE ILLEGALITY CHANNEL; SOUKUP MINIMAL MERIT VIA ZHANG; ADDITIONAL HIGH-IMPACT	View	

Date	Proceedings	Document	Fee
	 GROUND(S) (TRANSACTION ID # 79438834) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN 		
2026-05-11	 EXHIBIT PACKET IN SUPPORT OF BENCH BRIEF RE GATEWAY SEQUENCING AND INLAND OVERSIGHT (TRANSACTION ID # 79438777) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN 	View	
2026-05-08	 REPLY TO PLAINTIFF'S OPPOSITION TO DEFENDANT'S SPECIAL MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT PURSUANT TO C.C.P. 425.16 (ANTI-SLAPP MOTION) (TRANSACTION ID # 79430135) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE 	View	
2026-05-08	 DECLARATION OF TYLER J. O'CONNELL IN SUPPORT OF DEFENDANT'S REPLY TO PLAINTIFF'S OPPOSITION TO DEFENDANT'S REPLY TO PLAINTIFF'S OPPOSITION TO DEFENDANT'S SPECIAL MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT PURSUANT TO C.C.P. 425.16 (ANTI-SLAPP MOTION) (TRANSACTION ID # 79430135) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE 	View	
2026-05-08	 REPLY TO PLAINTIFF'S OPPOSITION TO DEFENDANT'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT (TRANSACTION ID # 79430135) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE 	View	
2026-05-08	 NOTICE UNDER CCP SECTION 128.7(C)(1): SAFE-HARBOR LETTER RE DEFENDANT'S ANTI-SLAPP REPLY (FILED MAY 6, 2026) (TRANSACTION ID # 79429808) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN 	View	
2026-05-08	 INDEXED EXHIBITS VOLUME IN SUPPORT OF OPPOSITION TO DEFENDANT'S MOTIONS (TRANSACTION ID # 79429388) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN 	View	
2026-05-08	 NOTICE OF LODGING TRIAL REPORTER TRANSCRIPTS, AUDIO RECORDINGS, AND CAD LOGS (TRANSACTION ID # 79429388) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN 	View	
2026-05-08	 EVIDENTIARY OBJECTIONS TO DECLARATIONS OF TYLER J. O'CONNELL IN SUPPORT OF DEFENDANT'S MOTIONS (TRANSACTION ID # 79429388) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN 	View	
2026-05-08	 SUPPLEMENTAL REQUEST FOR JUDICIAL NOTICE (INSURANCE CODE 790.03(H));FAIR CLAIMS REGULATION (TRANSACTION ID # 79429388) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN 	View	
2026-05-08	 REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF OPPOSITION TO DEFENDANT'S MOTIONS (SPECIAL MOTION TO STRIKE, DEMURRER, MTS) (TRANSACTION ID # 79429388) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN 	View	
2026-05-08	 DECLARATION OF OF DYLAN FRANCISCUS ROSARIO IN OPPOSITION TO DEFENDANT'S SPECIAL MOTION TO STRIKE, DEMURRER, AND MOTION TO STRIKE (CCP 436) (TRANSACTION ID # 79429388) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN 	View	
2026-05-08	 NOTICE OF INTENT TO APPEAR AND CONTEST TENTATIVE RULING, MAY 13, 2026 (TRANSACTION ID # 79429443) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN 	View	
2026-05-08	 NOTICE RE CCP 425.17 INSURANCE-INDUSTRY ANTI-SLAPP MISUSE; AND DEFENSE LITIGATION CONDUCT (TRANSACTION ID # 79429443) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN 	View	
2026-05-08	 MOTION TO STRIKE THE MAY 6, 2026 REPLY DECLARATION OF TYLER J. O'CONNELL AND EXHIBIT A; OR IN THE ALTERNATIVE, FOR LEAVE TO FILE A SUR-REPLY (TRANSACTION ID # 79429443) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR MAY-13-2026 AT 09:00 AM IN DEPT 302 	View	IFP
2026-05-08	 OPPOSITION TO DEFENDANT'S MOTION TO STRIKE PURSUANT TO C.C.P. SECTION 436; FIFTEEN-PAGE COMPLIANT VERSION (TRANSACTION ID # 79429350) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN 	View	

Date	Proceedings	Document	Fee
2026-05-08	OPPOSITION TO DEFENDANT'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT; FIFTEEN-PAGE COMPLIANT VERSION (TRANSACTION ID # 79429350) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-08	OPPOSITION TO DEFENDANT'S SPECIAL MOTION TO STRIKE PURSUANT TO C.C.P. SECTION 425.16; FIFTEEN-PAGE COMPLIANT VERSION (CRC 3.1113(D)) (TRANSACTION ID # 79429350) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-08	NOTICE OF WITHDRAWAL AND DESIGNATION OF OPERATIVE OPPOSITIONS (TRANSACTION ID # 79429280) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-08	NOTICE OF COMPLIANCE WITH APRIL 30 2026 COURT ORDER (TRANSACTION ID # 79429280) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-08	NOTICE TO THE COURT AND CLERK OF MAY 8, 2026 CURE FILINGS, ITEMIZED CROSS-REFERENCE, ACCEPTANCE OF RESPONSIBILITY FOR PRIOR NON-CONFORMING MEMORANDA, AND STATEMENT OF RULE-BY-RULE AUTHORITY FOR EACH CURE DOCUMENT (TRANSACTION ID # 79429280) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-06	DECLARATION OF TYLER J. O'CONNELL IN SUPPORT OF DEFENDANT'S REPLY TO PLAINTIFF'S OPPOSITION TO DEFENDANT'S SPECIAL MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT PURSUANT TO C.C.P. SECTION 425.16 (ANTI-SLAPP MOTION) (TRANSACTION ID # 79407488) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE	View	
2026-05-06	REPLY TO PLAINTIFF'S OPPOSITION TO DEFENDANT'S SPECIAL MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT PURSUANT TO C.C.P. SECTION 425.16 (ANTI-SLAPP MOTION) (TRANSACTION ID # 79407488) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE	View	
2026-05-06	REPLY TO PLAINTIFF'S OPPOSITION TO DEFENDANT'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT (TRANSACTION ID # 79407488) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE	View	
2026-05-06	CASE MANAGEMENT CONFERENCE OF MAY-27-2026 CONTINUED TO JUL-08-2026 AT 10:30 AM IN DEPARTMENT 610. NOTICE SENT BY COURT.	View	
2026-05-05	DECLARATION OF TYLER J. O'CONNELL IN SUPPORT OF OPPOSITION TO PLAINTIFF'S MOTION TO DEEM ADMITTED, COMPEL, AND FOR SANCTIONS (TRANSACTION ID # 79394845) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE	View	
2026-05-05	OPPOSITION TO PLAINTIFF'S MOTION TO DEEM ADMITTED COMPEL, AND FOR SANCTIONS (TRANSACTION ID # 79394845) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE	View	
2026-05-05	NOTICE NOTICE UNDER CODE OF CIVIL PROCEDURE SECTION 128.7, SUBDIVISION (C)(1), AND DECLARATION OF PLAINTIFF (TRANSACTION ID # 79392330) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79392330) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	SUPPLEMENTAL BENCH BRIEF RE 425.17(C) (DEMURRER) (TRANSACTION ID # 79392330) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	SUPPLEMENTAL BENCH BRIEF RE 425.17(C) (436 MOTION TO STRIKE) (TRANSACTION ID # 79392330) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

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2026-05-05	SUPPLEMENTAL BENCH BRIEF RE 425.17(C) (ANTI-SLAPP) (TRANSACTION ID # 79392330) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	DECLARATION OF ADDITIONAL DISCOVERY (CCP SECTION 2033.050 + 2030.050, IF APPLICABLE) (TRANSACTION ID # 79392208) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	REQUESTS FOR PRODUCTION (SET SIX) (TRANSACTION ID # 79392208) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	SPECIAL INTERROGATORIES (SET SIX) (TRANSACTION ID # 79392208) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	FORM INTERROGATORY 17.1 (DISC-001) ? SET SIX WRAPPER (TRANSACTION ID # 79392208) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	REQUESTS FOR ADMISSION (SET SIX) (TRANSACTION ID # 79392208) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79392208) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79392134) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	REQUEST FOR JUDICIAL NOTICE (ISO LODGING PROPOSED TAC) (TRANSACTION ID # 79391968) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	DECLARATION OF FRANCISCUS DYLAN ROSARIO IN SUPPORT OF LODGING PROPOSED THIRD AMENDED COMPLAINT (TRANSACTION ID # 79391968) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	MEMORANDUM OF POINTS AND AUTHORITIES RE PROBABILITY OF PREVAILING (CODE CIV. PROC., SECTION 425.16(B)) (TRANSACTION ID # 79391968) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	NOTICE OF LODGING PROPOSED THIRD AMENDED COMPLAINT FOR ANTI-SLAPP STEP-TWO CONSIDERATION (TRANSACTION ID # 79391968) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79391968) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	SUPPLEMENTAL MEMORANDUM OF POINTS AND AUTHORITIES RE INSURANCE CODE AND FAIR CLAIMS SETTLEMENT PRACTICES REGULATION PREDICATES BEARING ON DEFENDANTS SPECIAL MOTION TO STRIKE (425.16, 425.17(C)) AND COMBINED 430.10 GENERAL DEMURRER (TRANSACTION ID # 79391656) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79391656) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-01	NOTICE OF ENTRY OF ORDER/NOTICE OF RULING FILED (TRANSACTION ID # 79369412) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE	View	
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EXHIBIT C

THE SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

Case Number: CGC25631801
Title: FRANCISCUS DYLAN ROSARIO VS. SUBHI ABDELHALIM ET AL
Cause of Action: OTHER NON EXEMPT COMPLAINTS
Generated: 2026-07-21 5:12 pm

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2026-05-26	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79564057) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	DECLARATION OF COMPLIANCE WITH CALIFORNIA RULES OF COURT AND CODE OF CIVIL PROCEDURE (TRANSACTION ID # 79564057) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	REQUEST FOR JUDICIAL NOTICE (FSX REJECTION RECORD AND MAY 12 MINUTES) (TRANSACTION ID # 79564057) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	DECLARATION OF FRANCISCUS DYLAN ROSARIO IN SUPPORT OF PRESERVATION OF REJECTED MAY 5 AND MAY 7, 2026 PAPERS (TRANSACTION ID # 79564057) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-26	NOTICE OF FILING FOR PRESERVATION OF THE APPELLATE RECORD OF THE MAY 12, 2026 ANTI-SLAPP HEARING; DECLARATION; REQUEST FOR JUDICIAL NOTICE; AND APPENDIX OF DOCUMENTS REJECTED BY THE CLERK ON MAY 5 AND MAY 7, 2026 (TRANSACTION ID # 79564057) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-22	LAW AND MOTION 301, DEFENDANTS' MOTION TO STRIKE PLEADING IS OFF CALENDAR; WITHDRAWN BY MOVING PARTY. JUDGE: CHRISTINE VAN AKEN, CLERK: E. LARNAUTI, NOT REPORTED		
2026-05-22	MINI MINUTES FOR MAY-22-26 09:00 AM FOR DEPT 301		
2026-05-21	PROOF OF SERVICE BY ELECTRONIC MAIL / PROOF OF SERVICE (AUTHORITY-OMISSIONS PRESERVATION SUB-PACKET 07) (CCP 1010.6, 1013; CRC 2.251) (TRANSACTION ID # 79538563) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-21	EXHIBIT LIST TO DECLARATION OF FRANCISCUS DYLAN ROSARIO (AUTHORITY-OMISSIONS PRESERVATION SUB-PACKET 07) (TRANSACTION ID # 79538563) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-21	DECLARATION OF FRANCISCUS DYLAN ROSARIO IN SUPPORT OF NOTICE OF DIRECTLY ADVERSE CONTROLLING AUTHORITY AND STATEMENT MEMORIALIZING OMISSIONS (CCP 2015.5) (TRANSACTION ID # 79538563) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-21	REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF NOTICE OF DIRECTLY ADVERSE CONTROLLING AUTHORITY AND STATEMENT MEMORIALIZING OMISSIONS (EVID. CODE, 452(D), 453; CRC 3.1113(L)) (TRANSACTION ID # 79538563) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-21	STATEMENT MEMORIALIZING CONTROLLING AUTHORITIES OMITTED FROM THE MAY 12, 2026 ANTI-SLAPP ORDER (PURE RECORD PRESERVATION; NO MERITS RELIEF) (TRANSACTION ID # 79538563) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-21	NOTICE OF DIRECTLY ADVERSE CONTROLLING AUTHORITY UNDER CAL. RULE OF PROFESSIONAL CONDUCT 3.3(A)(2): JKC3H8 V. COLTON (2013) 221 CAL.APP.4TH 468; POST-RULING RECORD PRESERVATION (TRANSACTION ID # 79538563) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-15	NOTICE OF WITHDRAWAL OF MOTION TO STRIKE PLEADING (TRANSACTION ID # 79489577) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	

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2026-05-15	DISCOVERY 301, PLAINTIFF'S MOTION TO DEEM ADMITTED, COMPEL, AND FOR SANCTIONS. THE COURT ADOPTS ITS TENTATIVE RULING: DENIED. SEE MINI-MINUTES FOR THE COURT'S COMPLETE RULING. PREVAILING PARTY TO SUBMIT A PROPOSED FORM OF ORDER. JUDGE: CHRISTINE VAN AKEN, CLERK: E. LARNAUTI, NOT REPORTED		
2026-05-15	MINI MINUTES FOR MAY-15-26 09:00 AM FOR DEPT 301		
2026-05-14	WRITTEN OBJECTIONS TO TENTATIVE RULING AND RESERVATION OF RIGHTS (TRANSACTION ID # 79478450) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-14	NOTICE OF RESERVATION OF COST-OF-PROOF SANCTIONS (CCP 2033.420) (TRANSACTION ID # 79478450) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-14	NOTICE OF NON-RECEIPT OF DEPARTMENT 301 TENTATIVE RULING; DECLARATION OF FRANCISCUS DYLAN ROSARIO; REQUEST FOR JUDICIAL NOTICE (TRANSACTION ID # 79478450) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-14	NOTICE OF INTENT TO APPEAR AND CONTEST TENTATIVE RULING (TRANSACTION ID # 79478450) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-12	LAW AND MOTION 301, PLAINTIFF FRANCISCUS ROSARIO'S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT IS DENIED AS MOOT. (SEE MINI MIUNTES FOR COMPLETE RULING) JUDGE: CHRISTINE VAN AKEN; CLERK: W. TRUPEK; NOT REPORTED (301/CVA)		
2026-05-12	LAW AND MOTION, 301, DEFENDANTS CSAA INSURANCE EXCHANGE, MICHAEL CHAMBERS, AND CARBONE, SMITH & KOYAMA'S DEMURRER TO AMENDED COMPLAINT. DEFENDANTS' DEMURRER TO THE FIRST AMENDED COMPLAINT IS OFF CALENDAR AS MOOT. JUDGE: CHRISTINE VAN AKEN; CLERK: W. TRUPEK; NOT REPORTED (301/CVA)		
2026-05-12	LAW AND MOTION 301, DEFENDANTS CSAA INSURANCE EXCHANGE, MICHAEL CHAMBERS, AND CARBONE, SMITH & KOYAMA'S MOTION TO STRIKE AMENDED COMPLAINT IS GRANTED. DEFENDANTS ARE ENTITLED TO FEES AND MAY MAKE A SEPARATE MOTION OR SEEK FEES WITH THEIR COST BILL, BUT A REQUEST FOR A PARTICULAR AMOUNT OF FEES FOR THE FIRST TIME ON REPLY DOES NOT GIVE SUFFICIENT NOTICE. [SEE WORD MINUTES FOR COMPLETE RULING] COUNSEL FOR THE PREVAILING PARTY IS REQUIRED TO PREPARE A PROPOSED ORDER WHICH REPEATS VERBATIM THE SUBSTANTIVE PORTION OF THE TENTATIVE RULING IN COMPLIANCE WITH CRC 3.1312. JUDGE: CHRISTINE VAN AKEN; CLERK: W. TRUPEK; NOT REPORTED (301/CVA)		
2026-05-12	MINI MINUTES FOR MAY-12-26 09:00 AM FOR DEPT 301		
2026-05-12	MINI MINUTES FOR MAY-12-26 09:00 AM FOR DEPT 301		
2026-05-12	MINI MINUTES FOR MAY-12-26 09:00 AM FOR DEPT 301		
2026-05-12	MINUTES FOR MAY-12-2026 9:00 AM	View	
2026-05-11	PROOF OF SERVICE BY ELECTRONIC SERVICE (TRANSACTION ID # 79442969) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-11	PROOF OF SERVICE BY ELECTRONIC SERVICE (TRANSACTION ID # 79442969) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-11	REQUEST FOR JUDICIAL NOTICE OF GOVERNING PROCEDURAL AND SUBSTANTIVE LAW (TRANSACTION ID # 79442969) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-11	REQUEST FOR JUDICIAL NOTICE AND STATEMENT OF APPELLATE PRESERVATION IN SUPPORT OF OPPOSITION(TRANSACTION ID # 79442969) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-08	DECLARATION OF DECLARATION OF TYLER J. O'CONNELL IN SUPPORT OF DEFENDANTS' REPLY TO PLAINTIFF'S OPPOSITION TO DEFENDANTS' SPECIAL MOTION TO STRIKE PLAINTIFF'S FIRST	View	

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	AMENDED COMPLAINT PURUANT TO C.C.P. 425.16 (ANTI-SLAPP MOTION) (TRANSACTION ID # 79430139) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA		
2026-05-08	REPLY TO PLAINTIFF'S OPPOSITION TO DEFENDANTS' SPECIAL MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT PURUANT TO C.C.P. 425.16 (ANTI-SLAPP MOTION) (TRANSACTION ID # 79430139) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-05-07	PROOF OF SERVICE BY ELECTRONIC MAIL ON MOTIONS TO STRICKE) (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	MOTION TO STRIKE THE MAY 5 2026 REPLY DECLARATION OF TYLER J OCONNELL AND EXHIBIT A OR IN THE ALTERNATIVE FOR LEAVE TO FILE A SUR-REPLY (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	PROOF OF SERVICE BY ELECTRONIC MAIL OF NOTICE OF INTENT, ETC. (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	NOTICE OF INTENT TO APPEAR AND CONTEST TENTATIVE RULING MAY 12 2026 (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	PROOF OF SERVICE BY ELECTRONIC MAIL OF NOTICE, ETC. (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	NOTICE AND STATEMENT TO THE COURT REGARDING CCP SEC 42517 STATUTORY BAR INSURANCE-INDUSTRY ANTI-SLAPP MISUSE DEFENSE LITIGATION CONDUCT AND CERTIFIED COURT-RECORD CONTRADICTIONS (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	PROOF OF SERVICE BY ELECTRONIC MAIL OF NOTICE OF LODGING (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	NOTICE OF LODGING TRIAL REPORTERS TRANSCRIPTS AUDIO RECORDINGS AND CAD LOGS (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	PROOF OF SERVICE BY ELECTRONIC MAIL OF EVIDENTIARY OBJECTIONS, ETC. (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	EVIDENTIARY OBJECTIONS TO DECLARATIONS OF TYLER J OCONNELL FILED APRIL 9 2026 AND MAY 5 2026 (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	PROOF OF SERVICE BY ELECTRONIC MAIL OF DECLARATION, ETC. (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	DECLARATION OF FRANCISCUS DYLAN ROSARIO IN OPPOSITION TO DEFENDANTS SPECIAL MOTION TO STRIKE (CCP SEC 42516) (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	PROOF OF SERVICE BY ELECTRONIC MAIL OF OPPOSITION, ETC. (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	SUPPLEMENTAL REQUEST FOR JUDICIAL NOTICE OF CALIFORNIA INSURANCE CODE SECTION 79003(H) AND FAIR CLAIMS SETTLEMENT PRACTICES REGULATIONS (10 CCR SECTIONS 26951-26958) (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

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2026-05-07	PROOF OF SERVICE BY ELECTRONIC MAIL OF REQUEST FOR JUDICIAL NOTICE, ETC. (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF OPPOSITION TO DEFENDANTS SPECIAL MOTION TO STRIKE (CCP SEC 42516) (TRANSACTION ID # 79418632) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79418621) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79418621) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79418621) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	CONSOLIDATED OPERATIVE OPPOSITION TO DEFENDANTS SPECIAL MOTION TO STRIKE (CCP SEC 42516) FIFTEEN-PAGE COMPLIANT VERSION (CRC 31113(D)) (TRANSACTION ID # 79418621) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	NOTICE OF WITHDRAWAL OF APRIL 21 2026 AND MAY 1 2026 MEMORANDA AND DESIGNATION OF MAY 7 2026 CONSOLIDATED OPERATIVE OPPOSITION (TRANSACTION ID # 79418621) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79418504) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	INDEXED EXHIBITS VOLUME IN SUPPORT OF OPPOSITION TO DEFENDANTS SPECIAL MOTION TO STRIKE (TRANSACTION ID # 79418504) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	PROOF OF SERVICE BY ELECTRONIC MAIL (TRANSACTION ID # 79418504) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-07	NOTICE TO THE COURT AND CLERK OF MAY 7 2026 CURE FILINGS ITEMIZED CROSS-REFERENCE AND STATEMENT OF RULE-BY-RULE AUTHORITY FOR EACH CURE DOCUMENT (TRANSACTION ID # 79418504) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-06	CASE MANAGEMENT CONFERENCE OF MAY-27-2026 CONTINUED TO JUL-08-2026 AT 10:30 AM IN DEPARTMENT 610. NOTICE SENT BY COURT.	View	
2026-05-06	LAW AND MOTION 301, PLAINTIFF FRANCISCUS ROSARIO'S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT IS CONTINUED ON THE COURT'S OWN MOTION TO MAY 12, 2026, TO JOIN THE OTHER PLEADINGS-RELATED MOTIONS SET FOR THAT DAY. JUDGE: CHRISTINE VAN AKEN, CLERK: E. LARNAUTI, NOT REPORTED		
2026-05-06	MINI MINUTES FOR MAY-06-26 09:00 AM FOR DEPT 301		
2026-05-06	NOTICE OF NON-RECEIPT OF DEPARTMENT 301 TENTATIVE RULING; DECLARATION OF FRANCISCUS DYLAN ROSARIO; REQUEST FOR JUDICIAL NOTICE; AND REQUEST FOR COURT DETERMINATION RE PRESERVATION OF DUE PROCESS (TRANSACTION ID # 79395446) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	DECLARATION OF TYLER J. OCONNELL IN SUPPORT OF REPLY TO PLAINTIFFS OPPOSITION TO DEFENDANTS SPECIAL MOTION TO STRIKE PLAINTIFFS FIRST AMENDED COMPLAINT PURUANT TO C.C.P. 425.16 (ANTI-SLAPP MOTION) (TRANSACTION ID # 79394972) (TRANSACTION ID # 79394972) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-05-05	REPLY TO PLAINTIFFS OPPOSITION TO DEFENDANTS SPECIAL MOTION TO STRIKE PLAINTIFFS FIRST AMENDED COMPLAINT PURUANT TO C.C.P. 425.16 (ANTI-SLAPP MOTION) (TRANSACTION ID # 79394972) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE	View	

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2026-05-05	SUPPLEMENTAL MEMORANDUM OF POINTS AND AUTHORITIES RE INSURANCE CODE AND FAIR CLAIMS SETTLEMENT PRACTICES REGULATION PREDICATES BEARING ON DEFENDANTS SPECIAL MOTION TO STRIKE (425.16, 425.17(C)) AND CROSS-NOTICED 436 MOTION (TRANSACTION ID # 79390967) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	NOTICE UNDER CODE OF CIVIL PROCEDURE SECTION 128.7, SUBDIVISION (C)(1), AND DECLARATION OF PLAINTIFF (TRANSACTION ID # 79390442) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	SUPPLEMENTAL BENCH BRIEF RE 425.17(C) (MFL + SAC) CAL. RULES OF COURT, RULE 3.1306(C)) (TRANSACTION ID # 79390442) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	SUPPLEMENTAL BENCH BRIEF RE 425.17(C) (TRANSACTION ID # 79390442) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	SUPPLEMENTAL BENCH BRIEF RE 425.17(C) (436 MOTION TO STRIKE) CAL. RULES OF COURT, RULE 3.1306(C)) (TRANSACTION ID # 79390442) (TRANSACTION ID # 79390442) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	SUPPLEMENTAL BENCH BRIEF RE 425.17(C) (ANTI-SLAPP) RULE 3.1306(C)) (TRANSACTION ID # 79390442) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	PROOF OF ELECTRONIC SERVICE (POS-050 + EFS-050 FORMAT) (TRANSACTION ID # 79390024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	NOTICE UNDER CODE OF CIVIL PROCEDURE SECTION 128.7, SUBDIVISION (C)(1), AND DECLARATION OF PLAINTIFF (TRANSACTION ID # 79390024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	SUPPLEMENTAL BENCH BRIEF RE 425.17(C) (MFL + SAC) (TRANSACTION ID # 79390024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	SUPPLEMENTAL BENCH BRIEF RE 425.17(C) (TRANSACTION ID # 79390024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	SUPPLEMENTAL BENCH BRIEF RE 425.17(C) (436 MOTION TO STRIKE) (TRANSACTION ID # 79390024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	SUPPLEMENTAL BENCH BRIEF RE 425.17(C) (ANTI-SLAPP) (TRANSACTION ID # 79390024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	EXHIBIT 1 MERGED PRONG-ONE OPPOSITION CHECKLIST (TRANSACTION ID # 79390024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-05	NOTICE OF LODGING : PRONG-ONE OPPOSITION CHECKLIST (CAL. R. CT., RULE 3.1110(F)) (TRANSACTION ID # 79390024) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-04	OPPOSITION TO PLAINTIFF'S MOTION TO DEEM ADMITTED, COMPEL, AND FOR SANCTIONS (TRANSACTION ID # 79382825) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-05-04	DECLARATION OF TYLER J. O'CONNELL IN SUPPORT OF OPPOSITION TO PLAINTIFF'S MOTION TO DEEM ADMITTED, COMPEL, AND FOR SANCTIONS (TRANSACTION ID # 79382825) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-05-01	CASE MANAGEMENT STATEMENT (TRANSACTION ID # 79369761) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CARBONE, SMITH & KOYAMA ESTIMATED TIME FOR TRIAL: 1.0 DAYS	View	

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2026-05-01	MEMORANDUM OF POINTS AND AUTHORITIES IN FURTHER OPPOSITION TO DEFENDANTS? SPECIAL MOTION TO STRIKE ? CUSTOMER? DOCTRINE UNDER 425.17(C) AND THE THIRD-PARTY CLAIMANT (INSURER + PANEL COUNSEL) (TRANSACTION ID # 79366033) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-01	OMNIBUS SUPPL. P+A BLACK-LETTER CONTRADICTIONS (MULTI-MOTION DOCKET) (TRANSACTION ID # 79366033) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-05-01	MEMORANDUM OF POINTS AND AUTHORITIES IN FURTHER OPPOSITION TO DEFENDANTS? SPECIAL MOTION TO STRIKE (CODE CIV. PROC., SECTION 425.16, 425.17(C) (TRANSACTION ID # 79366033) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-30	NOTICE OF LODGING SUPPLEMENTAL AUTHORITY (CODE CIV. PROC., SECTION 425.16, 425.17) (TRANSACTION ID # 79359065) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-30	REQUEST FOR JUDICIAL NOTICE (TRANSACTION ID # 79359065) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-24	PLAINTIFF'S EVIDENTIARY OBJECTIONS TO THE DECLARATION OF TYLER J. O'CONNELL FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-24	PLAINTIFF'S SUPPLEMENTAL BRIEF IN FURTHER SUPPORT OF MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT [COVER SHEET FOR LATE-LODGED REPLY PAPERS] FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-24	PLAINTIFF'S REPLY IN SUPPORT OF MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT, AND OPPOSITION TO DEFENDANT'S APRIL 23, 2026 OPPOSITION AND DECLARATION FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-24	NOTICE OF RULING ON PLAINTIFF'S EX PARTE APPLICATION TO STAY MOTION TO STRIKE FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-24	REMARK: AS TO THE APR-24-2026 EX PARTE HEARING RE: PLAINTIFF'S EX PARTE APPLICATION FOR AN ORDER STAYING MOTION TO STRIKE, THE COURT DENIES PLAINTIFF'S EX PARTE APPLICATION. JUDGE: HAROLD E. KAHN, CLERK: S. KANE, NOT REPORTED. (301)		
2026-04-24	OPPOSITION TO PLAINTIFF'S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT (TRANSACTION ID # 79304162) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-04-24	DECLARATION OF TYLER J. O'CONNELL IN SUPPORT OF OPPOSITION TO PLAINTIFF'S MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT (TRANSACTION ID # 79304162) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-04-24	PROOF OF ELECTRONIC SERVICE OF ORAL-ARGUMENT OUTLINE ISO EX PARTE STAY; AND CONSOLIDATED POS-050 APR 22 SERVICE FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-24	ORAL-ARGUMENT OUTLINE ISO EX PARTE APPLICATION TO STAY MOTION TO STRIKE PENDING RULING ON MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-24	CONSOLIDATED PROOF OF ELECTRONIC SERVICE - APRIL 22, 2026 SERVICE (CASE 801) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-23	ERRATA AND SUPPLEMENTAL DECLARATION RE: MOTION FOR LEAVE TO FILE SAC FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

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2026-04-23	SEPARATE STATEMENT OF FACTS IN SUPPORT OF MOTION FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-23	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MOTION FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-23	NOTICE OF MOTION AND MOTION TO DEEM ADMITTED, COMPEL, AND FOR SANCTIONS FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR MAY-15-2026 AT 09:00 AM IN DEPT 301	View	IFP
2026-04-23	PROOF OF SERVICE BY ELECTRONIC MAIL OF TRACK1-01-NTC-DEEM-COMPEL-SANCTIONS.PDF FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-23	DECLARATION IN SUPPORT OF EX PARTE APPLICATION FOR ORDER FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-23	EX PARTE APPLICATION FOR ORDER STAYING MOTION TO STRIKE FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	IFP
2026-04-23	NOTICE OF RELATED CASES FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-23	CMC TRIAL-DATE PRESERVATION STATEMENT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-22	REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF MOTION TO STRIKE PLEADING (TRANSACTION ID # 79125696) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-04-22	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MOTION TO STRIKE PLEADING (TRANSACTION ID # 79125696) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-04-22	DECLARATION OF TYLER J. OCONNELL IN SUPPORT OF MOTION TO STRIKE PLEADING (TRANSACTION ID # 79125696) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-04-22	MOTION TO STRIKE 1ST AMENDED COMPLAINT (TRANSACTION ID # 79125696) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA HEARING SET FOR MAY-22-2026 AT 09:00 AM IN DEPT 301	View	\$60.00
2026-04-21	PROOF OF ELECTRONIC SERVICE OF NOTICE OF MOTION AND MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-21	REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF MOTION FOR LEAVE FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-21	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-21	DECLARATION OF FRANCISCUS DYLAN ROSARIO IN SUPPORT OF MOTION FOR LEAVE FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-21	NOTICE OF MOTION AND MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN HEARING SET FOR MAY-06-2026 AT 09:00 AM IN DEPT 301	View	IFP
2026-04-21	PROOF OF ELECTRONIC SERVICE OF MEMORANDUM OF POINTS AND AUTHORITIES IN OPPOSITION TO DEFENDANTS' DEMURRER; MEMORANDUM OF POINTS AND AUTHORITIES IN OPPOSITION TO SPECIAL MOTION TO STRIKE; COMBINED OBJECTION TO RFJN AND EVIDENTIARY OBJECTIONS TO DECLARATIONS; AND DECLARATION AND REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF OPPOSITIONS FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	

Date	Proceedings	Document	Fee
2026-04-21	DECLARATION AND REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF OPPOSITION FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-21	COMBINED OBJECTION TO RFJN AND EVIDENTIARY OBJECTIONS TO DECLARATIONS FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-21	MEMORANDUM OF POINTS AND AUTHORITIES IN OPPOSITION TO DEFENDANTS' DEMURRER FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-21	MEMORANDUM OF POINTS AND AUTHORITIES IN OPPOSITION TO SPECIAL MOTION TO STRIKE FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-04-13	DECLARATION OF TYLER J. O'CONNELL IN SUPPORT OF DEFENDANTS' DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT (TRANSACTION ID # 79038715) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-04-13	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF DEFENDANTS' DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT (TRANSACTION ID # 79038715) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-04-13	REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT (TRANSACTION ID # 79038715) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-04-13	STATEMENT OF DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT (TRANSACTION ID # 79038715) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-04-13	DEMURRER TO 1ST AMENDED COMPLAINT / NOTICE OF DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT (TRANSACTION ID # 79038715) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA HEARING SET FOR MAY-12-2026 AT 09:00 AM IN DEPT 301	View	\$60.00
2026-04-09	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF SPECIAL MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT PURSUANT TO C.C.P. 425.16 (ANTI-SLAPP MOTION) (TRANSACTION ID # 79007825) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-04-09	REQUEST FOR JUDICIAL NOTICE REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF SPECIAL MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT PURSUANT TO C.C.P. 425.16 (ANTI-SLAPP MOTION) (TRANSACTION ID # 79007825) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-04-09	MOTION TO STRIKE 1ST AMENDED COMPLAINT /MOTICE OF MOTION TO STRIKE PLAINTFF'S FIRST AMENDED COMPLAINT PURSUANT TO C.C.P. 425.16 (ANTI-SLAPP MOTION) (TRANSACTION ID # 79007825) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA HEARING SET FOR MAY-12-2026 AT 09:00 AM IN DEPT 301	View	\$1305.00
2026-04-09	DECLARATION OF TYLER J. O'CONNELL IN SUPPORT OF SPECIAL MOTION TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT PURSUANT TO C.C.P. 425.16 (ANTI-SLAPP MOTION) (TRANSACTION ID # 79007825) FILED BY DEFENDANT CSAA INSURANCE EXCHANGE CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	

Date	Proceedings	Document	Fee
2026-04-01	PROOF OF SERVICE OF FIRST AMENDED COMPLAINT, MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF AMENDED COMPLAINT; SUPPLEMENTAL MEMO; REQUEST FOR JUDICIAL NOTICE; DEMAND FOR JUDICIAL SUMMARY; DISCOVERY DOCUMENTS FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-03-13	SUMMONS ON COMPLAINT, PROOF OF SERVICE ONLY, FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN SERVED MAR-12-2026, PERSONAL SERVICE, NO SERVICE FEE AS TO DEFENDANT CSAA INSURANCE EXCHANGE	View	
2026-03-09	REQUEST FOR JUDICIAL NOTICE FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-03-09	PLAINTIFF'S DEMAND FOR JUDICIAL SUMMARY OF FACTS FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-03-09	PLAINTIFF'S MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF INDEPENDENT ACTION IN EQUITY: THE NAVARATNASINGHAM "DOLAN" ADMISSION AS FATAL PROOF OF EXTRINSIC FRAUD AND FRAUD ON THE COURT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-03-09	PLAINTIFF'S SUPPLEMENTAL MEMORANDUM OF POINTS AND AUTHORITIES FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-03-09	MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF AMENDED COMPLAINT FOR INDEPENDENT ACTION IN EQUITY FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-03-06	CONSENT TO ELECTRONIC SERVICE AND NOTICE OF ELECTRONIC SERVICE ADDRESS FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-02-25	SUMMONS ISSUED ON FIRST AMENDED COMPLAINT TO PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2026-02-25	1ST AMENDED COMPLAINT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN AS TO DEFENDANT ABDELHALIM, SUBHI CSAA INSURANCE EXCHANGE DOES 1 THOUGH 50, INCLUSIVE PHILLIPS, SPALLAS & ANGSTADT LLP NAVARATNASINGHAM, PRIYA D. REYNA, ALBERTO CHAMBERS, MICHAEL R. CARBONE, SMITH & KOYAMA	View	
2026-02-13	DECLARATION OF TYLER J. OCONNELL IN SUPPORT OF GOOD FAITH ATTEMPT TO MEET AND CONFER (TRANSACTION ID # 78470809) FILED BY DEFENDANT ABDELHALIM, SUBHI CSAA INSURANCE EXCHANGE	View	
2026-01-09	SUMMONS ON COMPLAINT, PROOF OF SERVICE ONLY, FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN SERVED JAN-05-2026, SUBSTITUTE SERVICE ON NATURAL PERSON, MAILING DATE JAN-06-2026, NO SERVICE FEE AS TO DEFENDANT ABDELHALIM, SUBHI	View	
2025-12-23	ORDER GRANTING WAIVER OF COURT FEES AND COSTS PURSUANT TO G.C. 68634 (E), CRC 3.52 AS TO PLAINTIFF ROSARIO, FRANCISCUS DYLAN	View	
2025-12-23	REQUEST PENDING TO WAIVE COURT FEES AND COSTS PURSUANT TO G.C. 68633, CRC 3.51, 8.26, AND 8.818 (CONFIDENTIAL) FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN		
2025-12-23	NOTICE TO PLAINTIFF	View	
2025-12-23	OTHER NON EXEMPT COMPLAINTS, COMPLAINT FILED BY PLAINTIFF ROSARIO, FRANCISCUS DYLAN AS TO DEFENDANT ABDELHALIM, SUBHI CSAA INSURANCE EXCHANGE DOES 1 THOUGH 50, INCLUSIVE SUMMONS ISSUED, JUDICIAL COUNCIL CIVIL CASE COVER SHEET FILED CASE MANAGEMENT CONFERENCE SCHEDULED FOR MAY-27-2026 PROOF OF SERVICE DUE ON FEB-23-2026 CASE MANAGEMENT STATEMENT DUE ON MAY-04-2026	View	IFP

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EXHIBIT D

P O R T E R | S C O T T

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

04/22/2026

Clerk of the Court

BY: SANDRA SCHIRO

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF MOTION
TO STRIKE**

vs.

CSAA INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

(C.C.P. § 435 AND C.C.P. § 436)

Defendants.

DATE: May 19, 2026

TIME: 09:00 A.M.

DEPT: 302

Complaint Filed: December 23, 2025 Amended

Complaint Filed: February 25, 2026

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I. INTRODUCTION

Plaintiff's First Amended Complaint ("FAC") improperly seeks damages that are not recoverable as a matter of law, including: attorney's fees, punitive damages, and a series of allegedly compensatory damages including: "forced third party litigation" damages, lost earnings, loss of earning capacity, "lost productive time," various medical-related damages, transportation, "household assistance," emotional distress damages, "future damages," injunctive relief, prejudgment interest and other miscellaneous and legally unsupportable items of alleged damage. All these items of alleged damages arise from Plaintiff's underlying third-party litigation against a CSAA insured, where Plaintiff lost by defense verdict; hence, these alleged damages are unsupported by any statutory, contractual, or factual basis. Further, the conduct alleged in the FAC is absolutely privileged as occurring in the course of litigation. Under Code of Civil Procedure § 436, the Court is authorized to strike any irrelevant, improper, or nonconforming matter from a pleading. Because the deficiencies in Plaintiff's damages claims appear on the face of the FAC and cannot be cured by amendment, the challenged portions should be stricken in their entirety.

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II. STATEMENT OF THE FACTS

A. THE PARTIES

Plaintiff is FRANCISCUS DYLAN ROSARIO ("Plaintiff").

Defendant CSAA INSURANCE EXCHANGE ("CSAA") was the insurance carrier for SUBHI ABDELHALIM ("Insured") during Plaintiff's litigation of *Rosario v. Abdelhalim*, Case No. CGC-21-594102.

B. FACTUAL AND PROCEDURAL BACKGROUND

Plaintiff has filed this new action (*See* RFJN **Ex. A**, *Plaintiff's FAC*) against the original defendant—from Plaintiff's prior personal injury lawsuit—SUBHI ABDELHALIM's insurance carrier: CSAA INSURANCE EXCHANGE ("CSAA" or "Defendant"). CSAA was the provider of ABDELHALIM's insurance policy. This motion to strike is filed on behalf of CSAA. (*See* RFJN **Ex. B**, *Register of Actions, Rosario v. Abdelhalim*, Case No. CGC-21-594102). Phillips, Spallas, and Angstadt, LLP, Priya D. Navaratnasingham, Alberto Reyna (collectively referred to as "PSA") were CSAA's retained insurance defense counsels who obtained a defense verdict at Plaintiff's underlying trial.

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1 **1. The Underlying Litigation – Plaintiff Lost his Jury Trial by Defense Verdict**

2 The FAC’s allegations against CSAA relate to Plaintiff’s belief that i) CSAA should not have
3 denied his claim back in February 2021; and ii) that CSAA, by and through its retained defense counsels,
4 made “false and misleading representations” (*FAC* ¶ 22F) to this Court (based on CSAA’s earlier claim
5 denial) which resulted in Plaintiff being forced to litigate his underlying jury trial—which Plaintiff lost by
6 defense verdict. (*See RFJN Ex. C, Defendant’s Notice of Entry of Judgment, Rosario v. Abdelhalim, Case*
7 *No. CGC-21-594102*). Now, Plaintiff seeks to recast his prior litigation as a claim against the original
8 defendant’s insurer: CSAA. The gravamen of FAC’s allegations swirl around all the same issues in the
9 underlying case—differences of opinion on the weight of certain trial evidence (911 calls, bodycam
10 footage, and CAD logs).

11 It is true that CSAA’s retained defense counsels *did* attempt to exclude the “objective liability
12 evidence” (*See FAC* ¶ 4); however, the Court denied Defendant’s motions in limine targeting this
13 evidence. Hence, Plaintiff was free to present to the jury, the complained-of “objective liability evidence.”
14 (*See FAC* ¶ 4). And he did just that at trial.

15 Each of the above claims is barred by California law as a collateral attack on a valid judgment and
16 invalid as a matter of law for seeking to target protected activity.¹ Along with these legally invalid claims,
17 Plaintiff’s FAC seeks recovery on equally invalid grounds for punitive damages (*see FAC* ¶ 1, 45, 47);
18 for lost earnings (*See FAC* ¶ 30-32); nebulous “health-related harm” damages (*see FAC* ¶ 33-36);
19 emotional distress damages (*See FAC* ¶ 37-40); and punitive damages (*See FAC* ¶ 61(5).) Plaintiff alleges
20 each of these so-called harms occurred as a result of standard litigation practices in a lawsuit that he
21 himself filed, litigated, and which a jury found to be meritless in rendering a defense verdict.

22 **2. Plaintiff’s Claimed Items of Damage to Be Stricken**

23 Plaintiff’s FAC claims a bevy of purported damages, none of which are supportable under
24 California law, in these circumstances, and all should be stricken from the pleadings.

25 **a) RELIANCE AND ECONOMIC INJURY** (*FAC*, pg. 8: line 14):

- 26 ○ out-of-pocket procurement and investigation expenses to obtain records and evidence
27 that CSAA represented had already been investigated, including:
 - 28 ▪ fees paid to obtain public records and related materials;
 - fees paid for copying, certification, and retrieval; and
 - fees paid for transcription and review of obtained audio and video. (*FAC*, ¶ 23-24).

¹ Defendant has recently filed a Demurrer and a Special Motion to Strike under Code Civ. Proc. § 425.16 (Anti-SLAPP motion).

1 **b) FORCED THIRD PARTY LITIGATION AND PRENTICE ATTORNEY-FEE**
2 **DAMAGES** (*FAC*, pg. 9: line 1-2)

- 3 ○ Plaintiff incurred fees and litigation costs in that third-party action that would not have
4 been incurred but for CSAA's Denial Letter misrepresentation. (*FAC*, ¶ 26).
- 5 ○ CSAA's tortious conduct caused Plaintiff to incur fees in litigation with another party.
6 (*FAC*, ¶ 27).²

7 **c) LOST EARNINGS, LOSS OF EARNING CAPACITY, AND LOST PRODUCTIVE**
8 **TIME CAUSE BY FRAUD INDUCED BURDENS** (*FAC*, pg. 10: line 6-7)

- 9 ○ ...incremental burdens that required Plaintiff to spend substantial time and effort
10 obtaining, reviewing, organizing, transcribing, authenticating, and presenting
11 foundational objective evidence that CSAA represented had already been investigated
12 before issuing a categorical denial. (*FAC*, ¶ 30).

13 **d) FRAUD-INDUCED DELAY, PHYSICAL EXACERBATION, AND ADDITIONAL**
14 **HEALTH-RELATED HARM** (*FAC*, pg. 10: line 20-21)

- 15 ○ Plaintiff alleges he suffered severe injuries in the underlying collision and that CSAA
16 knew, or had reason to know, from the nature of the claim and the information provided
17 in connection with the bodily-injury liability claim, that Plaintiff was physically
18 vulnerable and that prolonged stress, delay, and repeated high-strain demands would
19 foreseeably impose additional physical toll. (*FAC*, ¶ 33).
- 20 ○ forced Plaintiff into a protracted and burdensome multi-year effort to establish and
21 authenticate foundational objective evidence relevant to liability, resulting in recurring
22 high-strain events including prolonged sitting, travel, preparation demands, and
23 extended periods of stress and uncertainty. (*FAC*, ¶ 34).
- 24 ○ incremental physical harm beyond the underlying collision injuries, including
25 exacerbation of pain, flare episodes, sleep disruption, deconditioning, and functional
26 decline, and that Plaintiff required additional medical or therapeutic care to address
27 these incremental harms. (*FAC*, ¶ 35).

28 **e) EMOTIONAL DISTRESS, HUMILIATION, AND PSYCHOLOGICAL HARM**
PROXIMATELY CAUSED BY FRAUD-INDUCED DELAY AND BURDENS (*FAC*, pg.
11: line 12-14)

- CSAA's Denial Letter ... stating... CSAA had "concluded" its investigation and
"concluded" its insured was not liable"[,] ... foreseeably inflicted substantial emotional
and psychological harm by placing Plaintiff in the position of being categorically
denied while also being forced to personally bear the burden of obtaining and proving
the foundational objective evidence CSAA represented had already been investigated.
(*FAC*, ¶ 37).
- Plaintiff suffered emotional distress and psychological harm including anxiety,
persistent stress, sleep disruption, and related symptoms, as well as humiliation and
loss of dignity associated with being treated as though his claim lacked merit
notwithstanding the existence of readily obtainable objective evidence. (*FAC*, ¶ 38).
- Plaintiff incurred additional out-of-pocket medical or therapeutic expenses related to
managing these conditions. (*FAC*, ¶ 39).

f) ADDITIONAL SPECIAL DAMAGES: MEDICAL/THERAPEUTIC EXPENSES,
TRANSPORTATION, AND HOUSEHOLD ASSISTANCE (*FAC*, pg. 12: line 7-8)

- medical visits, therapy or counseling, medication expenses, transportation expenses
associated with treatment and required events, and costs of assistance with household

² The *FAC* duplicitously claims that "Plaintiff does not seek attorney fees in this action as a prevailing-party fee award."
(*FAC* ¶ 28). Well, naturally, given that Plaintiff lost his jury trial and owes approximately \$75,000.00 in costs.

tasks and self-care that were increased by the incremental physical and psychological toll caused by the fraud-induced delay. (*FAC*, ¶ 41).

g) FUTURE DAMAGES CAUSED BY FRAUD-INDUCED AGGRAVATION AND ONGOING HARM (*FAC*, pg. 12: line 18-19)

- may require future medical or therapeutic care, and may continue to impair Plaintiff's ability to work and to engage in ordinary life activities. (*FAC*, ¶ 43).

h) INJUNCTIVE RELIEF (*FAC*, pg. 18: line 5)

- Enjoining CSAA from issuing denial letters stating an investigation is 'concluded.' (*FAC*, pg. 18: line 5-6)

i) COSTS OF SUIT (*FAC*, pg. 18: line 17)

j) PREJUDGMENT INTEREST (*FAC*, pg. 18: line 18).

III. LEGAL STANDARD

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof..." (Code Civ. Proc. § 435(B)(1).) Furthermore, "[t]he court may, upon a motion made pursuant to section 435, or at any time in its discretion, and upon terms it deems proper:

(a) strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc. § 436)

Where pleadings are defective, "the defect may be raised by a demurrer or motion to strike or by motion for judgment on the pleadings." (*Coyne v. Krempels*, (1950) 36 Cal.2d 257, 263.)

Here, each of Plaintiff's alleged damages falls squarely within this rule. Plaintiff cannot recover attorney's fees as a self-represented litigant; cannot meet the heightened pleading and evidentiary requirements for punitive damages; and cannot base any other claimed damages on conduct that is absolutely privileged under California's litigation privilege, and when he lacks standing.

IV. THE FAC'S CLAIMED DAMAGES ARE IRRELEVANT, FALSE, IMPROPER AND DO NOT CONFORM WITH THE LAWS OF THIS STATE

Plaintiff's FAC improperly seeks multiple categories of damages that are not recoverable as a matter of law and are unsupported by any cognizable factual or legal basis. As set forth below, Plaintiff's demands for attorney's fees, punitive damages, and all compensatory damages each fail independently under well-established California law. The FAC relies on conclusory allegations, improper legal argument, and conduct that is either legally privileged or wholly insufficient to meet the applicable pleading and evidentiary standards. Accordingly, these damages claims constitute irrelevant, improper, and nonconforming matter subject to strike pursuant to Code Civ. Pro. § 436.

1 **A. THERE IS NO BASIS FOR PLAINTIFF’S CLAIM FOR ATTORNEY’S FEES**

2 “Except as attorney’s fees are specifically provided for by statute, the measure and mode of
3 compensation of attorneys and counselors at law is left to the agreement, express or implied, of the
4 parties;...” (*Trope v. Katz* (1995) 11 Cal.4th 274, 278–279; Code Civ. Proc., § 1021.) Under California
5 law, a party litigating in propria persona is not entitled to recover attorney’s fees. (*Trope*, supra, 11 Cal.4th
6 at 292.)

7 Here, Plaintiff seeks attorney’s fees for his own time, as a pro per litigant, and for expenses
8 allegedly incurred in litigating his prior action—and this action. (FAC, p. 3, lines 12–15; p. 9, lines 16–
9 25.) However, the FAC identifies no statutory, contractual, or equitable basis for such recovery. Even if
10 Plaintiff had an attorney, which he does not, he represented himself in both the underlying litigation and
11 this action and therefore cannot recover such fees as a matter of law. (*Ibid.*)

12 Accordingly, Plaintiff’s demand for attorney’s fees is improper and should be stricken pursuant to
13 Code of Civil Procedure section 436 as irrelevant and not drawn in conformity with California law.

14 **B. THERE IS NO BASIS FOR PLAINTIFF’S CLAIM FOR PUNITIVE DAMAGES**

15 “A claim for punitive damages requires ‘evidence which establishes by ‘clear and convincing
16 evidence’ that the defendant has been ‘guilty of oppression, fraud, or malice.’” (*Food Pro Internat., Inc.*
17 *v. Farmers Ins. Exchange* (2008) 169 Cal.App.4th 976, 994, quoting *Stewart v. Truck Ins. Exchange*
18 (1993) 17 Cal.App.4th 468, 481-482.) This requirement is enshrined in Civil Code § 3294(a) which states
19 in relevant part that “[i]n an action for the breach of an obligation. . . , where it is proven by clear and
20 convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff. . .
21 may recover damages for the sake of example and by way of punishing the defendant.” To meet this
22 evidentiary standard, Plaintiff must present evidence that is “so clear as to leave no substantial doubt’;
23 ‘sufficiently strong to command the unhesitating assent of every reasonable mind.” (*In re Angelia P.*,
24 (1981) 28 Cal.3d 908, 919.)

25 Along with its failure to state a “breach of an obligation”, as required by Civ. Code § 3294(a), the
26 FAC presents no factual support for any fraud. Instead, the FAC seems to rely on quotations from litigation
27 related communications in which CSAA stated that it had concluded its investigation into Plaintiff’s
28 original claim. (*See FAC* ¶¶ 2, 4, 5, 8, 16, 17, 18, 20.) Plaintiff alleges that this denial letter, and subsequent

1 litigation conduct, constitutes evidence of fraud. Not only is the information alleged by Plaintiff proper,
2 litigation related conduct and thus subject to absolute privilege, it does not present evidence of any kind,
3 let alone “sufficiently strong to command the unhesitating assent of every reasonable mind.” (*In re*
4 *Angelia, supra*, at 919.) Instead, to support his assertion Plaintiff presents arguments which.

5 The FAC presents as evidence only an argument that, “CSAA could not have reached a conclusion
6 that its insured was ‘not liable’ in the face of its own insured’s admission of contact. The existence of this
7 admission [allegedly in a 911 call] corroborates either that CSAA never obtained the recording (rendering
8 the ‘investigation concluded’ representation false) or that CSAA obtained it and disregarded it (rendering
9 the denial reckless or fraudulent).” (*See FAC* ¶21A.) This is argument over the interpretation of evidence.
10 CSAA reached a different conclusion from the evidence, and the jury agreed with CSAA. Plaintiff’s FAC
11 fails, therefore, to present evidence which is so “clear as to leave no substantial doubt” (*In re Angelia,*
12 *supra*, at 919,) that a routine denial of an insurance claim (a denial supported by the jury’s verdict)
13 constitutes malice, oppression or fraud. Crucially, the jury reached the same conclusion that CSAA
14 reached in its investigation, that CSAA’s insured was not, in any way, liable to Plaintiff.

15 **1. Plaintiff’s Claim for Punitive Damages is Subject to Strike Because There Has**
16 **Been No Oppression.**

17 Oppression is conduct “that subjects a person to cruel and unjust hardship in conscious disregard
18 of their rights.” (*Today’s IV v. Los Angeles Metropolitan Transportation Authority* (2022) 83 Cal. App.
19 5th 1137.)

20 To support his conclusion that CSAA’s denial of liability was improper, Plaintiff’s allegations
21 center around CSAA’s defense of it’s insured (*See FAC* at ¶ 22D, 22F.) Plaintiff was allegedly “forced ...
22 into third-party litigation in CGC-21-594102 to vindicate his claim” via routine litigation. (*See FAC* ¶ 25.)
23 Not only was Plaintiff’s claim not “vindicated”, but a properly empaneled jury rendered a “9-3 defense
24 verdict in the Underlying Action.” (*See FAC* ¶ 25A.) In sum, Plaintiff alleges that CSAA’s good faith
25 litigation defense of it’s insured from Plaintiff’s unsuccessful litigation has somehow deprived him of key
26 rights. CSAA abiding its contractual duty to fund a successful defense of its cannot constitute the requisite
27 oppression for the pleading of punitive damages.

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1 **2. Plaintiff’s Claim for Punitive Damages is Subject to Strike Because the FAC**
2 **Cannot Allege Malice.**

3 “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or
4 despicable conduct which is carried on by the defendant with a willful and conscious disregard of the
5 rights or safety of others.” (Civ. Code, § 3294 (c)(1).) “Despicable conduct” has been defined as conduct
6 that is “so vile, base, or contemptible that it would be looked down upon and despised by ordinary decent
7 people.” (*McNeal v. Whittaker, Clark & Daniels, Inc.* (2022) 80 Cal.App.5th 841, 866.)

8 At most, the FAC alleges that Defendant engaged in wrongful conduct by i) denying a claim; and
9 ii) funding a successful defense of that claim. (*FAC* ¶¶ 2, 3, 4, 16, 17, 21A.) Such allegations, even if
10 accepted as true, cannot be described as being “... so vile, base, contemptible, miserable, wretched or
11 loathsome that it would be looked down upon and despised by ordinary decent people.” (*American*
12 *Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050.) Plaintiff’s
13 FAC cannot possibly support even an inference of malice. CSAA performed an investigation, determined
14 that its insured was not liable, and informed Plaintiff of their decision. The same facts were presented to
15 a jury, and the jury agreed with CSAA’s denial position, rendering a “9-3 defense verdict in the Underlying
16 Action.” (*FAC* ¶ 25A.) This is routine practice in the insurance industry, and the objective facts as
17 presented by Plaintiff do not show conduct which was “intended by the defendant to cause injury to the
18 plaintiff or despicable conduct...carried on by the defendant with a willful and conscious disregard of the
19 rights or safety of others.” (Civ. Code § 3294 (c)(1).)

20 Therefore, CSAA’s denial of Plaintiff’s initial demand does not constitute malice, as required by
21 California law to support his demand for punitive damages.

22 **3. Plaintiff’s Claim for Punitive Damages is Subject to Strike Because The FAC**
23 **Cannot Plead Fraud.**

24 “In California, fraud must be pled specifically; general and conclusory allegations do not suffice.”
25 (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) When the defendant is a corporate entity, the
26 pleading standard is even higher, the Plaintiff must plead, with particularity, facts to “to show how, when,
27 where, to whom, and by what means the representations were tendered.” (*Ibid.*)

28 The FAC fails to allege facts sufficient to state a claim for fraud. In the absence of a properly

1 pleaded fraud claim, Plaintiff's demand for punitive damages in the FAC is irrelevant in improper.
2 Because the FAC has not sufficiently pled malice, fraud, or oppression, the Court should find the portions
3 of the FAC seeking punitive damages to be irrelevant and improper and strike those portions pursuant to
4 Code Civ. Proc. § 436.

5 **C. THERE IS NO BASIS FOR PLAINTIFF'S CLAIMS FOR VARIOUS COSTS,**
6 **COMPENSATORY DAMAGES, INJUNCTIVE RELIEF, OR FUTURE DAMAGES**

7 The entire factual basis contained in the FAC targets privileged conduct and communications
8 under Civ. Code § 47(b). Further, Plaintiff lacks standing to sue CSAA for the claims herein, including
9 the claim for all his alleged compensatory damages.

10 **1. The Absolute Litigation Privilege Bars the FAC's Claim for Compensatory**
11 **Damages**

12 Civ. Code § 47(b) provides in relevant part:

13 A privileged publication or broadcast is one made...(b) In any (1) legislative proceeding,
14 (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the
15 initiation or course of any other proceeding authorized by law and reviewable pursuant to
Chapter 2...

16 "The only exception to the application of section 47(2) to tort suits has been for malicious
17 prosecution actions." (*Ribas v. Clark* (1985) 38 Cal. 3d 355, 364.) The privilege also "poses a clear bar to
18 [an] action insofar as it is based on . . . the tort of intentional infliction of emotional distress." (*Ribas v.*
19 *Clark* (1985) 38 Cal.3d 355, 364.)

20 Here, all the conduct alleged in Plaintiff's FAC arises from statements, filings, or other
21 communicative acts undertaken in connection with prior judicial proceedings. As such, those allegations
22 fall squarely within the scope of the litigation privilege and cannot support a claim for emotional distress
23 damages as a matter of law.

24 Plaintiff has not alleged in the FAC any cause of action for malicious prosecution, nor could he do
25 so under these circumstances and facts alleged. On the contrary, Plaintiff is the party who initiated and
26 pursued the underlying litigation. Accordingly, the sole exception to the litigation privilege (malicious
27 prosecution) is inapplicable here. Accordingly, all portions of Plaintiff's FAC related to emotional distress
28 damages should be stricken pursuant to Code Civ. Proc. § 436.

1 **2. Plaintiff Lacks Standing Against CSAA to Assert a Claim for Compensatory**
2 **Damages**

3 Plaintiff lacks standing against CSAA in its capacity as insurance carrier for a third-party
4 insured—to whom Plaintiff lost at trial.

5 “As a general rule, a third party may directly sue an insurer only when there has been an assignment
6 of rights by, or a final judgment against, the insured.” (*Shaolian v. Safeco Ins. Co.* (1999) 71 Cal.App.4th
7 268.) Further, California courts have consistently held that an attorney cannot be sued by an adverse party
8 for that attorneys’ actions in representing their client, except for an action for malicious prosecution. (*See,*
9 *e.g., Norton v. Hines* (1975) 49 Cal.App.3d 917; *Omega Video v. Superior Court*, (1983) 146 Cal. App.
10 3d 470.)

11 Here, Plaintiff obtained neither an assignment from, nor judgment against, the Insured, Subhi
12 Abdelhalim. Plaintiff is a third party to Defendant, and had no direct relationship with it, and seeks only
13 to sue CSAA for its role in affording a defense to its Insured, through trial. Beyond these threshold bars,
14 there are no specific allegations that CSAA made any specific misleading representations to the Court,
15 whatsoever. Indeed, CSAA—in its role as insurance carrier to the original defendant—did not actually
16 litigate the trial. Indeed, Plaintiff’s FAC improperly imputes the acts of retained insurance defense
17 counsel, against Defendant. Plaintiff cites no authority for the proposition that he can hold an insurance
18 company responsible for the litigation conduct of its third-party insurance defense counsel, while
19 defending a third-party insured. Hence, CSAA cannot possibly be liable for Plaintiff’s underlying
20 emotional distress from a lawsuit Plaintiff lost.

21 **3. Plaintiff is Collaterally Estopped from Seeking Recovery on the Same**
22 **Damages Sought in his Underlying Jury Trial—Which he Lost.**

23 Plaintiff is estopped from simply attempting to relitigate all the same damages that he failed to
24 obtain at his underlying jury trial.

25 “A collateral attack is an attempt to avoid the effect of a judgment or order made in some other
26 proceeding.” *F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 462, 471 (*quoting Rico v. Nasser Bros.*
27 *Realty Co.* (1943) 58 Cal.App.2d 878, 882.) “An attack in a second action on an earlier judgment is
28 collateral.” (*Ibid.*) (citing *Wouldridge v. Burns* (1968) 265 Cal.App.2d 82, 84.) “A judgment of a court of

1 general jurisdiction can only be set aside on collateral attack if the judgment is void on the face of the
2 record.” (*Wouldridge, supra*, 265 Cal.App.2d at 84.) Finally, “collateral estoppel precludes relitigation of
3 issues argued and decided in prior proceedings.” (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 826.)

4 Finally, “[t]here are no maxims of the law more firmly established, or of more value in the
5 administration of justice, than [those] ... designed to prevent repeated litigation between the same parties
6 in regard to the same subject of controversy.” *U.S. v. Throckmorton* (1878) 98 U.S. 61, 65 (*emphasis*
7 *added.*)

8 Here, the FAC’s entire effort is to relitigate all the same issues presented in his underlying case—
9 and seek all the same damages sought in the original case. All the key damages allegations against
10 Defendant target the same damages attributable to Plaintiff’s injuries in the underlying case, which
11 culminated in a defense verdict and valid judgment. Hence all the purported damages presented in this
12 FAC were already “argued and decided in prior proceedings.” (*Singh, supra*, 227 Cal.App.4th at 826).
13 Hence all Plaintiff’s damages should be stricken from the FAC.

14 **4. Plaintiff Was Not the Prevailing Party at the Underlying Jury Trial and**
15 **Cannot Therefore Seek Costs.**

16 To obtain compensatory damages or prevailing party costs, Plaintiff must have prevailed at trial.
17 He did not.

18 Under Code Civ. Proc. § 1032, the term ““Prevailing party”” includes the party with a net monetary
19 recovery, ... the “prevailing party” shall be as determined by the court, and under those circumstances,
20 the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties.
21 Furthermore, “a prevailing party is entitled as a matter of right to recover costs in any action or
22 proceeding.”

23 Hence, here, all the items of Plaintiff’s alleged damages that are simply his costs in litigating the
24 underlying jury trial cannot be recovered and should also be stricken.

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V. CONCLUSION

Based upon the foregoing facts and authorities, Defendant respectfully requests that the Court issue an order striking the FAC in its entirety, or in the alternative to strike those damages items identified in Plaintiff's FAC, which are unsupportable as a matter of law.

Dated: April 22, 2026

PORTER SCOTT

A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____

Chad S. Tapp

Tyler J. O'Connell

Attorneys for Defendant

CSAA INSURANCE EXCHANGE

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 22, 2026, I served the following document: **MEMORANDUM OF POINTS AND
7 AUTHORITIES IN SUPPORT OF MOTION TO STRIKE PLEADING**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

12 Addressed as follows:

13 **PLAINTIFF, IN PRO PER**

14 Franciscus Dylan Rosario
15 7624 Melody Drive
16 Rohnert Park, CA 94928
17 soltrinox@gmail.com

18 I declare under penalty of perjury under the laws of the State of California that the foregoing is
19 true and correct. Executed on Sacramento, California on April 22, 2026.

20 **Monique Schubert**
21 Monique Schubert

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EXHIBIT E

Stephanie Hengl

From: Serena Blithe
Sent: Tuesday, June 23, 2026 2:33 PM
To: Stephanie Hengl
Subject: FW: June 24, 2026, 9AM Dept. 301 Law & Motion / Discovery calendar - LINE 10 CGC-25-631802 FRANCISCUS DYLAN ROSARIO VS. CSAA INSURANCE EXCHANGE ET AL

Importance: High

FYI



Serena Blithe

Legal Secretary to Brandi Turner, Victoria D. Sandulyak and Lucie B. Pino

P| 916.929.1481 x 142 F| 916.927.3706

[2180 Harvard Street | Suite 500 | Sacramento, CA 95815](#)

porterscott.com

CONFIDENTIALITY NOTICE: This email and any attachments are confidential and privileged. Any inadvertent disclosure shall not waive the attorney-client or work product privileges. If you have received this email in error, please notify the sender immediately and delete all copies of the email and any attachments.

From: Contest Dept 301 TR <Contestdept301tr@sftc.org>
Sent: Tuesday, June 23, 2026 2:30 PM
To: soltrinox@gmail.com; Chad S. Tapp <ctapp@porterscott.com>; Tyler O'Connell <toconnell@porterscott.com>; Monique Schubert <mschubert@porterscott.com>; Serena Blithe <sblithe@porterscott.com>
Cc: Contest Dept 301 TR <Contestdept301tr@sftc.org>; Calendar 301 <Calendar301@sftc.org>
Subject: June 24, 2026, 9AM Dept. 301 Law & Motion / Discovery calendar - LINE 10 CGC-25-631802 FRANCISCUS DYLAN ROSARIO VS. CSAA INSURANCE EXCHANGE ET AL
Importance: High

External email

Good afternoon,

Due to the court's website character limits, please see the Court's complete tentative ruling below.

Please forward to any party or counsel that may have been inadvertently omitted.

Thank you,
Dept. 301

Line 10
CGC-25-631802 FRANCISCUS DYLAN ROSARIO VS. CSAA INSURANCE EXCHANGE ET AL

1. Motion For Leave To File Third Amended Complaint

Moving Party: FRANCISCUS ROSARIO

Filed: May 26, 2026

Tentative Ruling:

Plaintiff's renewed motion to amend is denied as moot. By companion order, the court has granted defendant's anti-SLAPP motion.

For the 9:00 a.m. calendar, all attorneys and parties may appear in Department 301 remotely or in person. Remote hearings will be conducted by videoconference using Zoom. (Dept. 301 Zoom ID 161 502 4290; Passcode 700956.) To appear remotely at the hearing, go to the court's website at sfsuperiorcourt.org under "Online Services," navigate to "Tentative Rulings," and click on the appropriate link, or dial the corresponding phone number.

Any party who contests a tentative ruling must send an email to contestdept301tr@sftc.org with a copy to all other parties by 4pm stating, without argument, the portion(s) of the tentative ruling that the party contests. The subject line of the email shall include the line number, case name and case number. The text of the email shall include the name and contact information, including email address, of the attorney or party who will appear at the hearing. Counsel for the prevailing party is required to prepare a proposed order which repeats verbatim the substantive portion of the tentative ruling and must email it to contestdept301tr@sftc.org prior to the hearing even if the tentative ruling is not contested.

The court no longer provides a court reporter in the Law & Motion or Discovery Department. Parties may retain their own reporter, who may appear in the courtroom or remotely. A retained reporter must be a California certified court reporter (CSR), for only a CSR's transcript may be used in California courts. If a CSR is being retained, include in your email all of the following: their name, CSR and telephone numbers, and their individual work email address.

2. MOTION TO STRIKE 1ST Amended COMPLAINT (anti-SLAPP)

Moving Party: CSAA INSURANCE EXCHANGE

Filed: May 27, 2026

Tentative Ruling:

Defendant's anti-SLAPP motion to strike plaintiff's First Amended Complaint is granted.

The court broadly construes the anti-SLAPP statute. (CCP 425.16(a).) Courts deciding anti-SLAPP motions use a two-step procedure. If the defendant shows that the plaintiff's claims arise from protected activity (prong one), then the burden "shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success" (prong two). (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384.) Under prong two, the plaintiff must make a "prima facie factual showing sufficient to sustain a favorable judgment." (*Id.* at 385.) In performing its analysis, the court looks to the pleadings, declarations or affidavits, and judicially noticeable material concerning the facts upon which liability is based. (CCP 425.16(b)(2).)

"[A] claim may be struck only if the speech or petitioning activity *itself* is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted." (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060.) Defendant meets prong one of the anti-SLAPP statute as the First Amended Complaint ("FAC") arises from protected activity under CCP sec. 425.16(e)(2) ["any written or oral statement or writing made in connection with an issue under consideration or review by a...judicial body"]. Plaintiff's action is based on defendant's litigation conduct. (FAC, par. 22F.) "Statements made in litigation, or in connection with litigation, are protected by" the anti-SLAPP statute. (*Bergstein v. Stroock & Stroock & Lavan LLP* (2015) 236 Cal.App.4th 793, 803; *City of Colton v. Singletary*

(2012) 206 Cal.App.4th 751, 767 [filing motions and other litigation conduct triggers the anti-SLAPP statute].) Plaintiff's pre-litigation denial letter also implicates the anti-SLAPP statute. (FAC, pars. 1, 2, 4, 22D.) "Case law establishes that communications that are intimately intertwined with, and preparatory to, the filing of judicial proceedings qualify as petitioning activity for the purpose of the anti-SLAPP statute." (*Cabral v. Martins* (1999) 177 Cal.App.4th 471, 482; see also *Salma v. Capon* (2008) 161 Cal.App.4th 1275, 1285 [notice of rescission of contract given as prerequisite to litigation was protected communication under § 425.16].)

Plaintiff's illegality argument fails. "Conduct that would otherwise come within the scope of the anti-SLAPP statute does not lose its coverage ... simply because it is alleged to have been unlawful or unethical. An exception to the use of section 425.16 applies only if a defendant concedes, or the evidence conclusively establishes, that the assertedly protected speech or petition activity was illegal as a matter of law. The exception does not apply here." (*Birkner v. Lam* (2007) 156 Cal.App.4th 275, 285 [citation simplified].)

CCP 425.17(b) does not apply. Plaintiff is not bringing this action "solely in the public interest or on behalf of the general public." CCP 425.17(c) is also inapplicable because defendant was not promoting commercial activity towards defendant. Rather, defendant was engaging in litigation-related activity.

Since defendants meet prong one, the plaintiff must establish via admissible evidence a probability of prevailing on the claims (prong two). (See *Computer Xpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1010.) Plaintiff cannot establish his claims since the litigation privilege bars them. (Civil Code section 47(b).)

"The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action." (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.) Defendants establish these elements. "Any doubt about whether the privilege applies is resolved in favor of applying it." (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 913.) The privilege applies to defendant's defense conduct including the prelitigation denial letter. (*Dove Audio, Inc. v. Rosenfeld, Meyer & Susman* (1996) 47 Cal.App.4th 777, 784 ["Just as communications preparatory to or in anticipation of the bringing of an action or other official proceeding are within the protection of the litigation privilege of Civil Code [§ 47(b)], we hold that such statements are equally entitled to the benefits of section 425.16."]; *Nguyen v. Proton Technology Corp.* (1999) 69 Cal.App.4th 140, 147 [The California Supreme Court "made clear that the 'litigation privilege' applies to pre-litigation communications as well as those occurring during the course of actual litigation."].)

Defendant's request for fees is deferred to a subsequent motion. The court cannot grant fees on the basis of a reply declaration, which does not give plaintiff the opportunity to respond.

For the 9:00 a.m. calendar, all attorneys and parties may appear in Department 301 remotely or in person. Remote hearings will be conducted by videoconference using Zoom. (Dept. 301 Zoom ID 161 502 4290; Passcode 700956.) To appear remotely at the hearing, go to the court's website at sfsuperiorcourt.org under "Online Services," navigate to "Tentative Rulings," and click on the appropriate link, or dial the corresponding phone number.

Any party who contests a tentative ruling must send an email to contestdept301tr@sftc.org with a copy to all other parties by 4pm stating, without argument, the portion(s) of the tentative ruling that the party contests. The subject line of the email shall include the line number, case name and case number. The text of the email shall include the name and contact information, including email address, of the attorney or party who will appear at the hearing. Counsel for the prevailing party is required to prepare a proposed order which repeats verbatim the

substantive portion of the tentative ruling and must email it to contestdept301tr@sftc.org prior to the hearing even if the tentative ruling is not contested.

The court no longer provides a court reporter in the Law & Motion or Discovery Department. Parties may retain their own reporter, who may appear in the courtroom or remotely. A retained reporter must be a California certified court reporter (CSR), for only a CSR's transcript may be used in California courts. If a CSR is being retained, include in your email all of the following: their name, CSR and telephone numbers, and their individual work email address.

3 - MOTION TO STRIKE Amended COMPLAINT

Moving Party: CSAA INSURANCE EXCHANGE

Filed: May 13, 2026

Tentative Ruling:

Off calendar as moot.

For the 9:00 a.m. calendar, all attorneys and parties may appear in Department 301 remotely or in person. Remote hearings will be conducted by videoconference using Zoom. (Dept. 301 Zoom ID 161 502 4290; Passcode 700956.) To appear remotely at the hearing, go to the court's website at sfsuperiorcourt.org under "Online Services," navigate to "Tentative Rulings," and click on the appropriate link, or dial the corresponding phone number.

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4 - DEMURRER to Amended COMPLAINT

Moving Party: CSAA INSURANCE EXCHANGE

Filed: May 13, 2026

Tentative Ruling:

Off calendar as moot.

For the 9:00 a.m. calendar, all attorneys and parties may appear in Department 301 remotely or in person. Remote hearings will be conducted by videoconference using Zoom. (Dept. 301 Zoom ID 161 502 4290; Passcode 700956.) To appear remotely at the hearing, go to the court's website at sfsuperiorcourt.org under "Online Services," navigate to "Tentative Rulings," and click on the appropriate link, or dial the corresponding phone number.

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5 - MOTION TO STRIKE

Moving Party: FRANCISCUS ROSARIO

Filed: May 13, 2026

Tentative Ruling:

The motion to strike portions of the O'Connell Declaration is denied as moot. In its order granting the anti-SLAPP motion, the court deferred consideration of fees to a subsequent motion.

For the 9:00 a.m. calendar, all attorneys and parties may appear in Department 301 remotely or in person. Remote hearings will be conducted by videoconference using Zoom. (Dept. 301 Zoom ID 161 502 4290; Passcode 700956.) To appear remotely at the hearing, go to the court's website at sfsuperiorcourt.org under "Online Services," navigate to "Tentative Rulings," and click on the appropriate link, or dial the corresponding phone number.

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6 - Notice Of Motion And Motion For Sanctions

Moving Party: FRANCISCUS ROSARIO

Filed: May 26, 2026

Tentative Ruling:

Plaintiff's motion for sanctions is denied. The anti-SLAPP motion is well-taken.

For the 9:00 a.m. calendar, all attorneys and parties may appear in Department 301 remotely or in person. Remote hearings will be conducted by videoconference using Zoom. (Dept. 301 Zoom ID 161 502

4290; Passcode 700956.) To appear remotely at the hearing, go to the court's website at sfsuperiorcourt.org under "Online Services," navigate to "Tentative Rulings," and click on the appropriate link, or dial the corresponding phone number.

Any party who contests a tentative ruling must send an email to contestdept301tr@sftc.org with a copy to all other parties by 4pm stating, without argument, the portion(s) of the tentative ruling that the party contests. The subject line of the email shall include the line number, case name and case number. The text of the email shall include the name and contact information, including email address, of the attorney or party who will appear at the hearing. Counsel for the prevailing party is required to prepare a proposed order which repeats verbatim the substantive portion of the tentative ruling and must email it to contestdept301tr@sftc.org prior to the hearing even if the tentative ruling is not contested.

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7 - Notice Of Motion To Compel Discovery
Moving Party: FRANCISCUS ROSARIO
Filed: May 26, 2026
Tentative Ruling:

The motion to compel discovery is DENIED. Discovery is stayed while an anti-SLAPP motion is pending. (CCP 425.16(g).) In addition, the motion is now moot since the court has granted the anti-SLAPP motion.

For the 9:00 a.m. calendar, all attorneys and parties may appear in Department 301 remotely or in person. Remote hearings will be conducted by videoconference using Zoom. (Dept. 301 Zoom ID 161 502 4290; Passcode 700956.) To appear remotely at the hearing, go to the court's website at sfsuperiorcourt.org under "Online Services," navigate to "Tentative Rulings," and click on the appropriate link, or dial the corresponding phone number.

Any party who contests a tentative ruling must send an email to contestdept301tr@sftc.org with a copy to all other parties by 4pm stating, without argument, the portion(s) of the tentative ruling that the party contests. The subject line of the email shall include the line number, case name and case number. The text of the email shall include the name and contact information, including email address, of the attorney or party who will appear at the hearing. Counsel for the prevailing party is required to prepare a proposed order which repeats verbatim the substantive portion of the tentative ruling and must email it to contestdept301tr@sftc.org prior to the hearing even if the tentative ruling is not contested.

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End

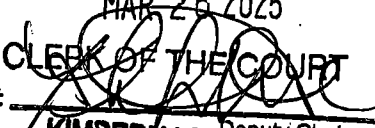
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EXHIBIT F

FILED
Superior Court of California
County of San Francisco

MAR 26 2025

CLERK OF THE COURT
BY: 
KIMBERLY SEPTIEN Deputy Clerk

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM,

Defendant.

Case No.: CGC-21-594102

ORDER:

- 1) **DENYING PLAINTIFF'S (FIVE) "NOTICE OF MOTION FOR DISQUALIFICATION OF JUDGE GARRET [SIC] WONG AND JUDICIAL REVIVE DUE TO CCP 170.6;"**
- 2) **STRIKING "PLAINTIFF'S MOTION FOR RECUSAL OR DISQUALIFICATION OF THE JUDGE GARRET [SIC] WONG AND DEMAND FOR RELIEF FROM CONSTITUTIONAL VIOLATIONS;" AND**
- 3) **STRIKING "NOTICE OF MOTION AND MOTION FOR JUDICIAL DISQUALIFICATION DUE TO CCP 170.1;"**

**IN THE ALTERNATIVE, VERIFIED
ANSWER OF JUDGE GARRETT L. WONG**

On July 27, 2021, plaintiff Franciscus Dylan Rosario filed the instant action for personal injury and property damage. After a number of trial continuances, on September 17, 2024, the Presiding Judge, who presides over the civil master calendar, granted defendant's ex parte

1 application for a continuance of the trial and continued the trial to January 27, 2025. The Presiding
2 Judge informed the parties that it was the final continuance.

3 Prior to the January 27, 2025, trial date, on January 17, 2025, defendant filed nineteen
4 motions in limine. On January 21, 2025, plaintiff filed one motion in limine. On January 27,
5 2025, plaintiff filed an opposition to defendant's motions in limine one through nineteen.
6 Additionally, plaintiff filed a separate opposition to defendant's motion in limine number
7 seventeen.

8 On January 27, 2025, plaintiff in propria persona and the attorneys for defendant Subhi
9 Abdelhalim appeared in Department 206, the civil master calendar court, and announced they were
10 ready for trial. The trial of this case was then assigned to the undersigned judicial officer for the
11 immediate start of trial. Thereafter, the parties appeared in Department 504 before the undersigned
12 judicial officer for the start of trial beginning with the hearing on pretrial motions. During the
13 hearing, plaintiff requested an accommodation, pursuant to the Americans with Disabilities Act
14 ("ADA"), to allow his legal assistants/advocates to sit with him at counsel table, which the Court
15 granted over the objection of the defendant. Plaintiff then requested a continuance of the trial.
16 After hearing the parties' arguments, for and against a trial continuance, the Court denied the
17 request.

18 The Court then heard argument on certain of the parties' motions in limine. As to plaintiff's
19 motion in limine number one regarding a 911 tape, and defendant's motion in limine number
20 seventeen to exclude evidence, the Court denied plaintiff's motion and granted defendant's motion
21 without prejudice to plaintiff demonstrating foundation for the evidence. As to defendant's
22 motions in limine one and four, to exclude plaintiff's expert witnesses and certain evidence
23 requiring an expert opinion, for failing to comply with Code of Civil Procedure section 2034.610,
24 the Court granted the motions. Plaintiff then renewed his motion for a trial continuance. The
25 parties were instructed to return to the master calendar department for plaintiff to make his motion,
26 and then return to Department 206 if the motion was not granted. The parties were directed to
27 return to this courtroom on January 28, 2025, for the second day of trial, if the Presiding Judge did
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1 not grant plaintiff's request for a trial continuance. (*See* Reporter's Transcript of Proceedings filed
2 by plaintiff ("RT"), dated 1/27/25.)

3 On January 28, 2025, because the Presiding Judge denied plaintiff's request for a
4 continuance, defendant's attorneys appeared for the second day of trial. Plaintiff did not appear.
5 Instead, one of plaintiff's assistants appeared for plaintiff and stated that plaintiff was unable to
6 attend the trial because he was in the hospital. No other information was provided. Defendant
7 moved for a dismissal of the trial due to plaintiff's absence, which the Court denied. Plaintiff's
8 assistant requested a continuance of the trial. Defendant's counsel objected to the continuance
9 because she alleged that plaintiff was making threats to defendant and defendant's counsel. (RT,
10 dated 1/28/25, pp. 15:4-16:7.) Defendant's counsel referred to defendant's motion in limine
11 number eight, which she stated concerned plaintiff's threatening emails. (*Ibid.*) Defendant's
12 counsel indicated that defendant would be supplementing motion in limine number eight with
13 recent threatening emails from plaintiff. (*Ibid.*) The Court indicated that if defendant believed the
14 threats were "important enough," defendant could pursue remedies outside of the proceedings. (*Id.*
15 at pp. 16:8-17:9.) The Court then granted plaintiff's request for a continuance and continued the
16 trial to February 3, 2025.

17 On February 3, 2025, plaintiff was not present. Plaintiff's assistant was present and
18 requested a continuance of the trial on plaintiff's behalf. Plaintiff's assistant indicated that plaintiff
19 sent an email to the Court, but not to defendant's counsel, regarding his medical condition and
20 request for a trial continuance. The Court ordered a copy of the email to be given to defendant's
21 counsel and to the Court. Plaintiff's assistant requested the trial be continued based on the ADA.
22 Defendant's counsel objected to the continuance because she claimed the defendant was suffering
23 extreme prejudice. Defendant's counsel indicated that masked men had entered defendant's store
24 and left a threatening note. (RT, dated 2/3/25, pp. 4:6-5:23.) Defendant's counsel expressed
25 concern that it could be related to the threatening emails from plaintiff. (*Ibid.*) Defendant's
26 counsel admitted that she did not know if the incident was related to this case. (*Id.* at p. 8:22-24.)
27 The Court stated that it was not drawing any connection between the emails and the purported
28 incident. (*Id.* at p. 10:6-9.) Plaintiff's assistant then indicated that plaintiff intended to produce as

1 evidence a video of defendant's store to demonstrate the type of people who frequented it, and to
2 show that purported elicited activity occurred in that area. (*Id.* at pp. 10-11.) The Court stated that
3 the video tape evidence was not relevant to the issues in the case. (*Id.* at p. 10.) The Court granted
4 a continuance of the case to February 18, 2025, to hear plaintiff's motion to continue based on the
5 ADA. The plaintiff was ordered to be present at the hearing or to provide substantiation of
6 plaintiff's diagnosis and prognosis. (*Id.* at p. 12.)

7 On February 18, 2025, plaintiff appeared with his two assistants. Defendant's attorneys
8 also appeared. At the hearing, the Court granted certain of plaintiff's ADA requests but denied
9 plaintiff's request for a trial continuance based on the ADA. (RT, dated 2/18/25, pp. 13:11-14:19.)
10 Additionally, plaintiff sought to reopen discovery. After hearing argument, the Court granted
11 plaintiff the right to designate current treating physicians as non-retained medical experts and have
12 those experts testify at trial regarding plaintiff's current medical condition and causation for same.
13 (*Id.* at pp. 65-68.) The Court placed restrictions regarding the timing of the disclosure, and the
14 timing and costs of the production of the doctor's records and the doctor's depositions. (*Ibid.*)
15 The Court then continued the trial to March 10, 2025.

16 On February 28, 2025, the Court held a hearing regarding plaintiff's motion for a protective
17 order and enforcement of court order regarding the treating physicians' depositions. Plaintiff's
18 motion was denied without prejudice to plaintiff raising the issues during the trial. Defendant's
19 attorney Alberto Reyna then raised an issue regarding defendant's motion in limine number eight,
20 and an additional email that plaintiff sent to defendant's attorneys and the Court in which plaintiff
21 referred to Mr. Alberto Reyna as "Miss" and referred to him as "Ms. Alberta Reyna." (RT, dated
22 2/28/25, pp. 55-56.) Defendant's attorney also complained that in the email, plaintiff addressed
23 defendant's attorney Priya Navaratnasingham with the "rat" in her name capitalized. (*Ibid.*)

24 The Court admonished plaintiff to show good judgment and to address the attorneys in an
25 appropriate manner. The Court asked plaintiff's assistants to review plaintiff's emails. The Court
26 admonished plaintiff that he could be subject to sanctions if the conduct continued. (*Id.* at pp.
27 56:9-57:5.) Plaintiff apologized for the conduct, stating "You're right, I shouldn't send E-mails
28 late at night, I apologize." (*Id.* at 58:1-9.) Plaintiff stated that he suffered brain damage from the

1 accident and that it caused “these emotional type of things.” (*Id.* at 57:16-21.) The Court warned
2 plaintiff that future incidents could be cause for a contempt hearing. (*Id.* at 58:10-26.) The Court
3 continued the trial to March 17, 2025.

4 On March 3, 2025, the Court issued an order after hearing. A true and correct copy of the
5 order is attached hereto as exhibit 1.

6 On March 10, 2025, plaintiff filed “Plaintiff’s Motion for Recusal or Disqualification of
7 Judge Garret [sic] Wong and Demand for Relief from Constitutional Violations” (hereinafter, “first
8 statement of disqualification”). Plaintiff did not personally serve the first statement of
9 disqualification on the undersigned judicial officer or on the judge’s clerk. In the first statement
10 of disqualification, plaintiff alleges that the undersigned judicial officer is biased against him and
11 in favor of defendant. Plaintiff contends that the undersigned judicial officer must be disqualified
12 from presiding over this case because of what plaintiff contends were secret ex parte
13 communications between the undersigned judicial officer and the defendant and/or his counsel
14 which pertain to unspecified “secret, unverified allegations.” Plaintiff further contends that the
15 undersigned must be disqualified because, purportedly, 1) the Court acknowledged defendant’s
16 claims regarding plaintiff’s threatening or harassing conduct toward defendant without compelling
17 defendant to substantiate the claims with formal evidence; 2) the Court threatened plaintiff with
18 sanctions even though plaintiff purportedly did not receive defendant’s proposed orders,
19 supplemental motion in limine, and email evidence in time to meaningfully respond; 3) the Court
20 required plaintiff to adhere to stringent, short-notice discovery and pay associated costs; 4) the
21 Court accepted defendant’s counsel’s representations that they did not receive the 911 tape without
22 requiring defendant to corroborate counsel’s representation; and 5) the Court purportedly
23 threatened to dismiss plaintiff’s case, refused to accommodate plaintiff, and required plaintiff to
24 be responsible for certain costs, while at the same time ignoring defendant’s “procedural
25 shortcomings.” In addition to seeking the disqualification of the undersigned judicial officer,
26 plaintiff requests a public reprimand of the undersigned and a hearing regarding the purported ex
27 parte communications. Plaintiff also requests that the Court’s prior rulings be set aside,
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1 defendant's counsel be sanctioned, defendant's answer to be stricken, and a default judgment
2 entered in plaintiff's favor.

3 On March 13, 2025, plaintiff filed "Notice of Motion and Motion for Judicial
4 Disqualification Due to CCP 170.1" (hereinafter, "second statement of disqualification"). Plaintiff
5 did not personally serve the second statement of disqualification on this judicial officer or on the
6 judge's clerk. In the second statement of disqualification, plaintiff claims that the undersigned
7 judicial officer demonstrated bias and was influenced by ex parte material. Plaintiff contends that
8 the defendant filed documents regarding serious allegations of harassment by plaintiff "under seal"
9 so that plaintiff could not see them. Plaintiff claims that the Court repeatedly referred to the sealed
10 material. Additionally, plaintiff contends that during the pretrial motion hearings, the undersigned
11 stated that the incident occurred when plaintiff was riding his scooter. Plaintiff states that he was
12 walking his scooter. Plaintiff contends that the Court shifted the burden to plaintiff to disprove
13 that he was riding his scooter. Finally, plaintiff contends that the undersigned demonstrated a bias
14 by not accepting plaintiff's evidence regarding the videotape of defendant's business.

15 Also on March 13, 2025, plaintiff filed five separate "Notice of Motion for Disqualification
16 of Judge Garret [sic] Wong and Judicial Review Due to CCP 170.6" (hereinafter, "170.6
17 challenges"). The 170.6 challenges make similar claims as made in the first and second statements
18 of disqualification, but the 170.6 challenges seek disqualification pursuant to Code of Civil
19 Procedure section 170.6.

20 Plaintiff's 170.6 challenges do not comply with the requirements set forth in Code of Civil
21 Procedure section 170.6(a)(2). Code of Civil Procedure section 170.6(a)(1) gives a party the right
22 to file an affidavit of prejudice against a judge assigned to hear any matter that involves the
23 determination of a contested issue of law or fact. Although a party has the right to file a section
24 170.6 challenge, the challenge must be timely made. (Code Civ. Proc. § 170.6 (a)(2); *Maas v.*
25 *Superior Court* (2016) 1 Cal.5th 962, 973.) "On timeliness requirements, section 170.6 states that
26 a challenge is permitted any time before the trial or hearing begins, but then sets forth three
27 exceptions, each of which mandates an earlier filing. (Citations.)" (*Sunrise Financial, LLC v.*
28 *Superior Court* (2019) 32 Cal.App.5th 114, 123.) The exceptions to the "general" rule include the

1 “master calendar” rule, the “all-purpose assignment” rule, and the “10-day/5-day” rule. (*People*
2 *v. Superior Court (Lavi)* (1993) 4 Cal.4th 1164, 1171; *Hemingway v. Superior Court* (2004) 122
3 Cal.App.4th 1148, 1154.) Regarding the master calendar rule, Code of Civil Procedure section
4 170.6(a)(2) states that “[i]f directed to the trial of a cause with a master calendar, the motion shall
5 be made to the judge supervising the master calendar not later than the time the cause is assigned
6 for trial.”

7 In this case, the master calendar rule applies. Pursuant to Uniform Local Rules of Court,
8 rule 6.0, the trial calendar for all civil cases is maintained by the Presiding Judge, who assigns civil
9 cases on the trial calendar to open courtrooms. This case was on the trial calendar on January 27,
10 2025. Both sides announced ready, and the Presiding Judge assigned the trial of this case to the
11 undersigned judicial officer. Plaintiff did not make the 170.6 challenges at that time. Instead, the
12 trial of this matter proceeded before the undersigned judicial officer with the submission of, and
13 ruling on, pretrial motions. Accordingly, plaintiff’s section 170.6 challenges are untimely, and
14 they are Denied.

15 Regarding plaintiff’s first and second statements of disqualification, Code of Civil
16 Procedure section 170.3(c)(1) requires that a statement of disqualification be personally served on
17 the judicial officer who is the subject of the disqualification or personally served on the judge’s
18 clerk when the judge is in the courthouse. Pursuant to Code of Civil Procedure section 170.3(c)(3),
19 the time for filing a response to a statement of disqualification does not start to run until the *later*
20 of the filing of the statement of disqualification or the personal service of the statement of
21 disqualification on the judicial officer who is the subject of the disqualification. The reason for
22 the personal service requirement is clear, to ensure that the judicial officer who is the subject of
23 the challenge has actual notice of it.

24 In this case, on March 10, 2025, plaintiff filed the first statement of disqualification, but he
25 did not personally serve it on this judicial officer or the judge’s clerk. On March 13, 2025, plaintiff
26 filed his second statement of disqualification, but did not personally serve it on this judicial officer
27 or the judge’s clerk. Plaintiff therefore did not comply with section 170.3(c)(1) because he did not
28 personally serve the statements of disqualification on the judicial officer who is the subject of the

1 challenge or on the judge's clerk. Consequently, the ten-day period for responding to the first and
2 second statements of disqualification has not run.

3 Plaintiff's first and second statements of disqualification do not state *facts* which constitute
4 grounds for disqualification of the undersigned judicial officer pursuant to Code of Civil Procedure
5 section 170.1. Where, as here, the disqualification statement does not reveal any grounds for
6 disqualification on its face, the Court can strike the statement of disqualification. (Code Civ. Proc.
7 §170.4(b); *Neblett v. Pacific Mutual Life Ins. Co.* (1943) 22 Cal.2d 393, 401.)

8 Code of Civil Procedure section 170.3(c)(1) requires that the statement of disqualification
9 set forth "the facts constituting the grounds" for the disqualification of the judge. Mere allegations
10 setting forth the conclusions of the declarant do not constitute such facts. (*Ephraim v. Superior*
11 *Court* (1941) 42 Cal.App.2d 578, 578-579; *Urias v. Harris Farms, Inc.* (1991) 234 Cal.App.3d
12 415, 426.) As the party seeking the disqualification of the undersigned judicial officer, plaintiff
13 has the burden of demonstrating that the undersigned judicial officer is biased or prejudiced; and,
14 in the absence of proof, the presumption is that no bias or prejudice exists. (*Betz v. Pankow* (1993)
15 16 Cal.App.4th 919, 926; *see also, Estate of Buchman* (1955) 132 Cal.App.2d 81, 104.) The party
16 raising the issue of bias "has a heavy burden and must 'clearly' establish the appearance of bias."
17 (*Wechsler v. Superior Court* (2014) 224 Cal.App.4th 384, 391.)

18 Plaintiff did not meet his burden. Plaintiff's claims regarding purported ex parte
19 communications, "secret allegations" against plaintiff, secret sealed filings, and judicial bias and
20 favoritism are not based on *facts*, but on hearsay, speculation, personal opinion, and conclusory
21 assertions. Yet, the declaration or verified statement filed in support of the disqualification is held
22 to the same standard of admissibility as is oral testimony. (*Mayo v. Beber* (1960) 177 Cal.App.2d
23 544, 551.) "[B]ias and prejudice are never implied and must be established by clear averments."
24 (*Woolley v. Superior Court* (1937) 19 Cal.App.2d 611, 626.) Verified statements which are based
25 upon hearsay or upon information and belief are insufficient to support a judicial disqualification.
26 (*See, N. Beverly Park Homeowners Ass'n v. Bisno* (2007) 147 Cal. App. 4th 762, 778; *United*
27 *Farm Workers of America, AFL-CIO v. Superior Court* (1985) 170 Cal.App.3d 97, 106, n. 6;
28 *Higgins v. City of San Diego* (1899) 126 Cal. 303, 313-314.) A party's unsubstantiated claims are

1 insufficient to support judicial disqualification. (*Bassett Unified School Dist. v. Superior Court*
2 (2023) 89 Cal.App.5th 273, 286.) Further, a party's conclusory assertions are insufficient to
3 support judicial disqualification. (*Urias v. Harris Farms, Inc.* (1991) 234 Cal.App.3d 415, 426;
4 *Ephraim v. Superior Court* (1941) 42 Cal.App.2d 578.)

5 The court in *In re Morelli* (1970) 11 Cal.App.3d 819, 843-44, held that a statement of
6 disqualification may be stricken where, as here, it is based upon "conclusions; references to
7 copious transcripts without citation to specific excerpts; allegations of facts not pertinent or
8 appropriate to the issues to be determined in the hearing; material not legally indicative of bias or
9 prejudice, such as judicial opinions expressed in the discharge of litigation and legal rulings;
10 judicial reactions based on actual observance in participation in legal proceedings; and references
11 to circumstances so inconsequential as to be no indication whatsoever of hostility and nonprobative
12 of any bias or prejudice. (Citations.)"

13 Plaintiff's subjective belief regarding bias is irrelevant and not controlling when
14 adjudicating a motion to disqualify for cause, as the test applied is an objective one. (*United Farm*
15 *Workers of America v. Superior Court* (1985) 170 Cal.App.3d 97, 104; *Stanford University v.*
16 *Superior Court* (1985) 173 Cal.App.3d 403, 408 ("the litigant's necessarily partisan views do not
17 provide the applicable frame of reference.")) "In the context of judicial recusal, '[p]otential bias
18 and prejudice must clearly be established by an objective standard.'" (*Haworth v. Superior Court*
19 (2010) 50 Cal.4th 372, 389; *Roitz v. Coldwell Banker Residential Brokerage Co.* (1998) 62
20 Cal.App.4th 716, 724 ("Potential bias and prejudice must clearly be established.")) "[T]he
21 partisan litigant emotionally involved in the controversy underlying the lawsuit is not the
22 disinterested objective observer whose doubts concerning the judge's impartiality provide the
23 governing standard." (*Haworth*, at p. 389.)

24 Bias or prejudice consists of a 'mental attitude or disposition of the judge towards
25 a party to the litigation . . .' (Citation.) In order for the judge to be disqualified, the
26 prejudice must be against a particular party ... and sufficient to impair the judge's
27 impartiality so that it appears probable that a fair trial cannot be held. (Citations.)
28 (*Ensher, Alexander & Barsoom, Inc. v. Ensher* (1964) 225 Cal.App.2d 318, 322-323; *see also*
Flier v. Superior Court (1994) 23 Cal.App.4th 165, 171.)

1 “To show bias or prejudice...there must be declarations showing indications of personal
2 bias or the existence of some fixed anticipatory prejudgment.” (*In re the Marriage of Fenton*
3 (1982) 134 Cal.App.3d 451, 457.) In this case, plaintiff has not demonstrated that the undersigned
4 judicial officer has a personal bias or a fixed anticipatory prejudgment of the issues in this case.

5 As stated in *People v. Ford* (1914) 25 Cal.App. 388, 395:

6 It is not sufficient in a case of this kind, to allege in the affidavit simply that the
7 defendant believes that he cannot have a fair and impartial trial, etc., but it must be
8 made to appear by the affidavit or affidavits on file that a fair and impartial trial
9 cannot be had before the judge about to try the case, by reason of the bias and
10 prejudice of such judge. (Citation.) The affidavit or affidavits must not only state
11 facts, but the facts stated must establish to the satisfaction of a reasonable mind that
12 the judge has a bias or prejudice that will in all probability prevent him from dealing
13 fairly with the defendant.

14 Here, plaintiff did not clearly establish that the Court is biased against him, nor did plaintiff
15 clearly establish that a person aware of the facts might reasonably entertain a doubt that the Court
16 would be fair and impartial in this matter. The test for such a determination is an objective one,
17 which asks “whether a reasonable member of the public at large, aware of all the facts, would
18 fairly entertain doubts concerning the judge’s impartiality.” (*Briggs v. Superior Court* (2001) 87
19 Cal.App.4th 312, 319.)

20 The ‘reasonable person’ is not someone who is ‘hypersensitive or unduly
21 suspicious,’ but rather is a ‘well-informed, thoughtful observer.’ (Citation.) ‘[T]he
22 partisan litigant emotionally involved in the controversy underlying the lawsuit is
23 not the *disinterested objective observer* whose doubts concerning the judge’s
24 impartiality provide the governing standard.’ (Citations.)

25 (*Wechsler v. Superior Court* (2014) 224 Cal.App.4th 384, 391.)

26 The disinterested objective observer would not have doubts as to whether the undersigned
27 judicial officer would be fair and impartial in this case because the present challenge is based
28 entirely upon the Court’s statements and rulings made during the proceedings.

 Like in the present case, in *Haldane v. Haldane* (1965) 232 Cal.App.2d 393, 395, one of
the parties claimed that the judge was biased against him. The court stated that even if the court

1 makes comments which are “critical or disparaging,” if they are made in furtherance of the court’s
2 duties, they are not grounds for disqualification. (*Ibid.*)

3 [O]pinions formed by the judge on the basis of facts introduced or events occurring
4 in the course of the current proceedings, or of prior proceedings, do not constitute
5 a basis for a bias or partiality motion unless they display a deep-seated favoritism
or antagonism that would make fair judgment impossible.

6 (*Liteky v. United States* (1994) 510 U.S. 540, 555; *see also, Marr v. Southern California Gas Co.*
7 (1925) 195 Cal. 352, 354.)

8 Additionally, plaintiff’s disagreement with the orders of the Court is wholly insufficient to
9 support a challenge for cause. Code of Civil Procedure section 170.2, subdivision (b), makes clear
10 that it is *not* grounds for disqualification that a judge “[h]as in any capacity expressed a view on a
11 legal or factual issue presented in the proceeding....”

12 “A trial court’s numerous rulings against a party—even when erroneous—do not establish
13 a charge of judicial bias, especially when they are subject to review.” (*People v. Farley* (2009) 46
14 Cal.4th 1053, 1110.) A party’s remedy for an erroneous ruling is not a motion to disqualify, but
15 rather review by appeal or writ. (172 Cal. 6 at p. 11; *see also, Ryan v. Welte* (1948) 87 Cal.App.2d
16 888, 893, “[A] wrong opinion on the law of a case does not disqualify a judge, nor is it evidence
17 of bias or prejudice.”) Otherwise, “no judge who is reversed by a higher court on any ruling or
18 decision would ever be qualified to proceed further in the particular case.” *Ryan v. Welte*, at p.
19 893.) As stated in *Liteky v. United States* (1994) 510 U.S. 540, 555:

20 [J]udicial rulings alone almost never constitute valid basis for a bias or partiality
21 motion. (Citation.) In and of themselves ... they cannot possibly show reliance
22 upon an extrajudicial source; and can only in the rarest circumstances evidence the
23 degree of favoritism or antagonism required ... when no extrajudicial source is
involved. Almost invariably, they are proper grounds for appeal, not for recusal.

24 In this case, if plaintiff believed that the court’s statements and rulings were erroneous, his
25 remedy was by way of an appeal or writ petition.

26 Code of Civil Procedure section 170 states that it is the duty of the judge to hear matters
27 assigned to him or her. Indeed, the Court of Appeal has stated that it is the court’s *obligation* not
28 to recuse itself where there are no grounds for disqualification.

1 Judicial responsibility does not require shrinking every time an advocate asserts the
2 objective and fair judge appears to be biased. The duty of a judge to sit where not
3 disqualified is equally as strong as the duty not to sit when disqualified. (Citation.)

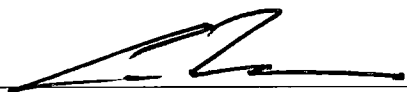
4 (*Briggs v. Superior Court* (2001) 87 Cal.App.4th 312, 319.)

5 Accordingly, because plaintiff's statement of disqualification discloses no legal grounds
6 for disqualification on its face, it is ordered stricken pursuant to Code of Civil Procedure section
7 170.4, subdivision (b).

8 The parties are reminded that this determination of the question of disqualification is not
9 an appealable order and may be reviewed only by a writ of mandate from the Court of Appeal
10 sought within 10 days of notice to the parties of the decision. (Code of Civ. Proc., § 170.3(d).) In
11 the event that a timely writ is sought and an appellate court determines that an answer should have
12 been timely filed, such an answer is filed herewith.

13 GOOD CAUSE APPEARING THEREFORE, It is so ordered.

14 Date: March 25, 2025

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18 Garrett L. Wong,
19 Judge of the Superior Court
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1 plaintiff requests that the Court's prior rulings be set aside, defendant's counsel be sanctioned,
2 defendant's answer to be stricken, and a default judgment entered in plaintiff's favor.

3 5. On March 13, 2025, plaintiff filed ""Notice of Motion and Motion for Judicial
4 Disqualification Due to CCP 170.1" (hereinafter, "second statement of disqualification"). Plaintiff
5 did not personally serve the second statement of disqualification on me or on my clerk. In the
6 second statement of disqualification, plaintiff claims that I demonstrated bias and was influenced
7 by ex parte material. Plaintiff contends that the defendant filed documents regarding serious
8 allegations of harassment by plaintiff "under seal" so that plaintiff could not see them. Plaintiff
9 claims that I repeatedly referred to the "sealed" material. Additionally, plaintiff contends that
10 during the pretrial motion hearings, I stated that the incident occurred when plaintiff was riding
11 his scooter, but plaintiff states that he was walking his scooter. Plaintiff contends that I shifted the
12 burden to plaintiff to disprove that he was riding his scooter. Finally, plaintiff contends that I
13 demonstrated bias by not accepting plaintiff's evidence regarding the videotape of defendant's
14 business.

15 6. I deny plaintiff's claims. I deny that I engaged in ex parte communications with
16 defendant or defendant's counsel. I deny that I engaged in ex parte communications with any party
17 or attorney. I deny that defendant filed his motion in limine number eight or any supplement to
18 that motion "under seal." I did not order any defense document filed under seal. I did not refer to
19 defendant's purportedly sealed material during the hearings.

20 7. I deny plaintiff's claims that I am biased against plaintiff and in favor of defendant.
21 I deny that any ground for my disqualification exists in this case. I am not biased or prejudiced
22 against or in favor of the plaintiff Franciscus Dylan Rosario. I am not biased or prejudiced against
23 or in favor of defendant Subhi Abdelhalim. I am not biased or prejudiced against or in favor of
24 defendant's attorneys. I am not biased or prejudiced against or in favor of any party or attorney in
25 this action. I know of no reason why I cannot be fair and impartial.

26 8. I deny plaintiff's claims that my statements, decisions, and rulings during the
27 hearings were the product of bias. It is my practice during the hearings in my courtroom to treat
28 all attorneys, litigants, witnesses, and court patrons with respect. At the same time, I must, and

1 do, comply with California Code of Judicial Ethics, Canon 3(B)(3), which states that “a judge
2 *shall* require order and decorum in proceedings before the judge.” (Emphasis added.)
3 Additionally, I must, and do, comply with California Code of Judicial Ethics, Canon 3(B)(6)
4 which states that “[a] judge shall require lawyers in proceedings before the judge to refrain from
5 (a) manifesting, by words or conduct, bias, prejudice, or harassment based upon race, sex, gender,
6 gender identity, gender expression, religion, national origin, ethnicity, disability, age, sexual
7 orientation, marital status, socioeconomic status, or political affiliation.” Although Canon
8 3(B)(6) refers to the judge’s obligation to require lawyers to refrain from manifesting bias,
9 prejudice, and harassment, I hold all litigants and persons appearing before me to this same
10 standard.

11 9. I am not now, nor have I ever been, predisposed to rule in any particular manner
12 in the instant action. In every case over which I preside, including the present case, all rulings
13 made by me are based upon the facts and arguments presented to me, upon my understanding of
14 the law, and my experience in handling similar cases.

15 10. All statements made by me, and all actions taken by me in this proceeding, and in
16 every proceeding over which I have presided, were done in furtherance of what I believe were my
17 judicial duties. My statements and rulings are set forth in the records and in the files herein, which
18 are the best evidence hereof. To that end, I refer to the reporter’s transcript of proceedings on
19 January 27, 2025, January 28, 2025, February 3, 2025, February 18, 2025, and February 28, 2025,
20 which plaintiff filed in support of his statements of disqualification. I additionally refer to the Court’s
21 order after hearing issued on March 3, 2025. A true and correct copy of the order is attached hereto
22 as exhibit 1. To the extent plaintiff’s statement of my statements and rulings are inconsistent
23 therewith, they are denied.

24 11. I know of no facts or circumstances which would require my disqualification or
25 recusal in this case.

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12. I do not believe that my recusal would serve the interests of justice.

I declare under penalty of perjury that the foregoing is true and correct.

Executed March 25, 2025, at San Francisco County, California.

Garrett L. Wong,
Judge of the Superior Court

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EXHIBIT G

ATTORNEY OR PARTY WITHOUT ATTORNEY STATE BAR NUMBER: NAME: Priya D. Navaratnasingham [SBN 252686] Alberto Reyna [SBN 347323] FIRM NAME: PHILLIPS, SPALLAS & ANGSTADT LLP STREET ADDRESS: 560 Mission Street, Suite 1010 CITY: San Francisco STATE: CA ZIP CODE: 94105 TELEPHONE NO.: 415-278-9400 FAX NO.: EMAIL ADDRESS: alreyna@psalaw.net pnavaratnasingham@psalaw.net ATTORNEY FOR (name): Defendant SUBHI ABDELHALIM SUPERIOR COURT OF CALIFORNIA, COUNTY OF San Francisco STREET ADDRESS: 400 McAllister St. MAILING ADDRESS: 400 McAllister St. CITY AND ZIP CODE: San Francisco, CA 94102 BRANCH NAME: Civil	<i>FOR COURT USE ONLY</i> ELECTRONICALLY FILED <i>Superior Court of California, County of San Francisco</i> 04/29/2025 Clerk of the Court BY: MADONNA CARANTO Deputy Clerk
PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO DEFENDANT/RESPONDENT: SUBHI ABDELHALIM	
NOTICE OF ENTRY OF JUDGMENT OR ORDER (Check one): ☒ UNLIMITED CASE (Amount demanded exceeded \$35,000) ☐ LIMITED CASE (Amount demanded was \$35,000 or less)	CASE NUMBER: CGC-21-594102

TO ALL PARTIES :

1. A judgment, decree, or order was entered in this action on (date): April 25, 2025
2. A copy of the judgment, decree, or order is attached to this notice.

Date: April 29, 2025

Alberto Reyna, Esq.

(TYPE OR PRINT NAME OF ☒ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)


(SIGNATURE)

PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO
 DEFENDANT/RESPONDENT: SUBHI ABDELHALIM

CASE NUMBER:
 CGC-21-594102

**PROOF OF SERVICE BY FIRST-CLASS MAIL
 NOTICE OF ENTRY OF JUDGMENT OR ORDER**

(NOTE: You cannot serve the Notice of Entry of Judgment or Order if you are a party in the action. The person who served the notice must complete this proof of service.)

1. I am at least 18 years old and **not a party to this action**. I am a resident of or employed in the county where the mailing took place, and my residence or business address is (*specify*):

2. I served a copy of the *Notice of Entry of Judgment or Order* by enclosing it in a sealed envelope with postage fully prepaid and (*check one*):

- a. ☐ deposited the sealed envelope with the United States Postal Service.
 b. ☐ placed the sealed envelope for collection and processing for mailing, following this business's usual practices, with which I am readily familiar. On the same day correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service.

3. The *Notice of Entry of Judgment or Order* was mailed:

- a. on (*date*):
 b. from (*city and state*):

4. The envelope was addressed and mailed as follows:

a. Name of person served:

Street address:

City:

State and zip code:

b. Name of person served:

Street address:

City:

State and zip code:

c. Name of person served:

Street address:

City:

State and zip code:

d. Name of person served:

Street address:

City:

State and zip code:

☐ Names and addresses of additional persons served are attached. (*You may use form POS-030(P).*)

5. Number of pages attached:

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

 (TYPE OR PRINT NAME OF DECLARANT)

_____
 (SIGNATURE OF DECLARANT)

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EXHIBIT H

ATTORNEY OR PARTY WITHOUT ATTORNEY: NAME: FRANCISCUS ROSARIO FIRM NAME: PRO PERSONA STREET ADDRESS: 7624 MELODY DR CITY: PHONER PARK STATE: CA ZIP CODE: 94928 TELEPHONE NO.: 650-488-7510 FAX NO.: EMAIL ADDRESS: soltrinox@gmail.com ATTORNEY FOR (name): —	FOR COURT USE ONLY FILED San Francisco County Superior Court JUN 27 2025 CLERK OF THE COURT BY: Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: 400 McALLISTER ST SAN FRANCISCO CA 94102 MAILING ADDRESS: 400 McALLISTER ST SAN FRANCISCO CA 94102 CITY AND ZIP CODE: SAN FRANCISCO, CA 94102 BRANCH NAME: CIVIC CENTER COURT HOUSE	
PLAINTIFF/PETITIONER: DEFENDANT/RESPONDENT:	
☒ NOTICE OF APPEAL ☐ CROSS-APPEAL (UNLIMITED CIVIL CASE)	CASE NUMBER: CGC-21-594102

Notice: Please read *Information on Appeal Procedures for Unlimited Civil Cases* (Judicial Council form APP-001-INFO) before completing this form. This form must be filed in the superior court, not in the Court of Appeal. A copy of this form must also be served on the other party or parties to this appeal. You may use an applicable Judicial Council form (such as APP-009 or APP-009E) for the proof of service. When this document has been completed and a copy served, the original may then be filed with the court with proof of service.

1. NOTICE IS HEREBY GIVEN that:

- a. (Name): **FRANCISCUS ROSARIO** appeals from a judgment or order in this case.
- b. The judgment or order was entered on (list the date or dates the judgment and each order being appealed were entered):
APRIL 25th 2025
- c. The appeal is from the following order or judgment (check all that apply):
- ☒ Judgment after jury trial
 - ☐ Judgment after court trial
 - ☐ Default judgment
 - ☐ Judgment after an order granting a summary judgment motion
 - ☐ Judgment of dismissal under Code of Civil Procedure, §§ 581d, 583.250, 583.360, or 583.430
 - ☐ Judgment of dismissal after an order sustaining a demurrer
 - ☐ An order after judgment under Code of Civil Procedure, § 904.1(a)(2)
 - ☐ An order or judgment under Code of Civil Procedure, § 904.1(a)(3)–(13)
 - ☐ Other (describe and specify the code section or other authority that authorizes this appeal):
- d. ☐ The judgment or order being appealed directs payment of sanctions by an attorney for a party. The attorney (name): _____ appeals.

2. For cross-appeals only:

- a. Date notice of appeal was filed in original appeal:
- b. Date superior court clerk mailed notice of original appeal:
- c. Court of Appeal case number (if known):

3. ☐ The judgment or order being appealed is attached (optional).

Date: **June 27th 2025**

FRANCISCUS ROSARIO
 (TYPE OR PRINT NAME)

(SIGNATURE OF PARTY OR ATTORNEY)

Page 1 of 1

1 **Franciscus Dylan Rosario v. CSAA Insurance Exchange; et al.**
2 **San Francisco County Superior Court Case No.: CGC-25-631802**

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815. On July 21, 2026, I served
6 the following document: **REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF
7 DEFENDANT'S MOTION TO DECLARE PLAINTIFF A VEXATIOUS LITIGANT**

8		BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9		BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10		BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	X	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

12 Addressed as follows:

13 **PLAINTIFF, IN PRO PER**

14 Franciscus Dylan Rosario
15 7624 Melody Drive
16 Rohnert Park, CA 94928
17 soltrinox@gmail.com

18 I declare under penalty of perjury under the laws of the State of California that the foregoing
19 is true and correct. Executed on Sacramento, California on July 21, 2026.

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24 **Serena Blithe**
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